Government of South Australia

State Bushfire Coordination Committee

GUIDELINES FOR

STATE BUSHFIRE COORDINATION COMMITTEE &

BUSHFIRE MANAGEMENT COMMITTEES

January 2018

UNDER REVIEW

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All references to BMC quorum requirements rescinded and replaced as a result of an SBCC resolution on 15 November 2024.

***NOTE**: the Terms of Reference for the SBCC and BMCs have been extracted from Part Six of this document and published as stand-alone documents, as a result of an SBCC resolution on 21 November 2025.*

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ABBREVIATIONS

AFAC	Australasian Fire and Emergency Services Authorities Council
BMAP	Bushfire Management Area Plan
BMC	Bushfire Management Committee
BoM	Bureau of Meteorology
BSP	Bushfire Safer Place
CFSVA	Country Fire Service Volunteers Association
CCSA	Conservation Council of South Australia
DEWNR	Department of Environment, Water and Natural Resources
DF	Drought Factor
DPTI	Department of Planning, Transport and Infrastructure
DPC	Department of Premier and Cabinet
EO	Executive Officer
FBDs	Fire Ban Districts
FDS	Fire Danger Season
FESA	*Fire and Emergency Services Act 2005* (SA)
FPO	Fire Prevention Officer
GAFLC	Government Agencies Fire Liaison Committee
LGA	Local Government Association
LRR	Last Resort Refuge
NRMC	Natural Resources Management Council
NPWA	*National Parks & Wildlife Act 1972* (SA)
NVC	Native Vegetation Council
OACDT	Outback Areas Community Development Trust
PPSA	Primary Producers SA
RPO	Regional Prevention Officer
SACFS	South Australian Country Fire Service
SAFC	South Australian Forestry Corporation
SAFECOM	South Australian Fire and Emergency Services Commission
SAMFS	South Australian Metropolitan Fire Service
SAPOL	South Australian Police
SAW	South Australian Water Corporation
SBCC	State Bushfire Coordination Committee
SDI	Soil Dryness Index

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***NOTE**: the Terms of Reference for the SBCC and BMCs have been extracted from Part Six of this document and published as stand-alone documents, as a result of an SBCC resolution on 21 November 2025.*

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INTRODUCTION

This document contains guidelines for members of the State Bushfire Coordination Committee (SBCC) and the Bushfire Management Committees [BMCs] on their roles and responsibilities with regard to bushfire management planning in South Australia.

This guideline should be regarded as a dynamic document, which will be amended and updated on an ongoing basis following SBCC decisions.

PART ONE: BUSHFIRE MANAGEMENT OVERVIEW

BACKGROUND

Under the *Fire and Emergency Services Act 2005 (FESA)* there is a two-tiered bushfire management framework, consisting of a State Bushfire Coordination Committee [SBCC] and nine Bushfire Management Committees [BMCs]. The SBCC is required to prepare and maintain a State Bushfire Management Plan [SBMP] to establish a strategic risk-based framework for bushfire management in South Australia. Each BMC is required by the *FESA* to develop, implement and review a Bushfire Management Area Plan [BMAP] based on assessment of bushfire risk to assets, incorporating a broader perspective on bushfire management values and local knowledge. Each of the BMAPs are required to be monitored for amendments annually and formally reviewed every four years.

There are other roles and responsibilities that the SBCC and BMCs are required to undertake in order to develop, maintain and review the BMAPs. The SBCC and BMC have specific functions including governance over bushfire management in South Australia, meetings, reporting on bushfire management activities, consideration of amendments to BMAPs, public consultation, election of sub-committees and working groups to achieve BMAP outcomes. This document serves to outline the policies and procedures for carrying out these specific roles and responsibilities to ensure consistency in the bushfire management process across the State.

LEGISLATIVE FRAMEWORK

The *Fire and Emergency Services Act 2005 (FESA)* is the primary legislative document for Bushfire Management Area Planning [BMAP] in South Australia. The *FESA* establishes a State Bushfire Coordination Committee [SBCC], and details its composition and functions. The SBCC divided the state into nine Bushfire Management Areas [BMAs], with a Bushfire Management Committee [BMC] required for each BMA. The composition and term of appointment of BMC members is determined by the SBCC after consultation with the Minister. Figure 1 below shows the reporting relationships for the legislated BMAP process in South Australia.

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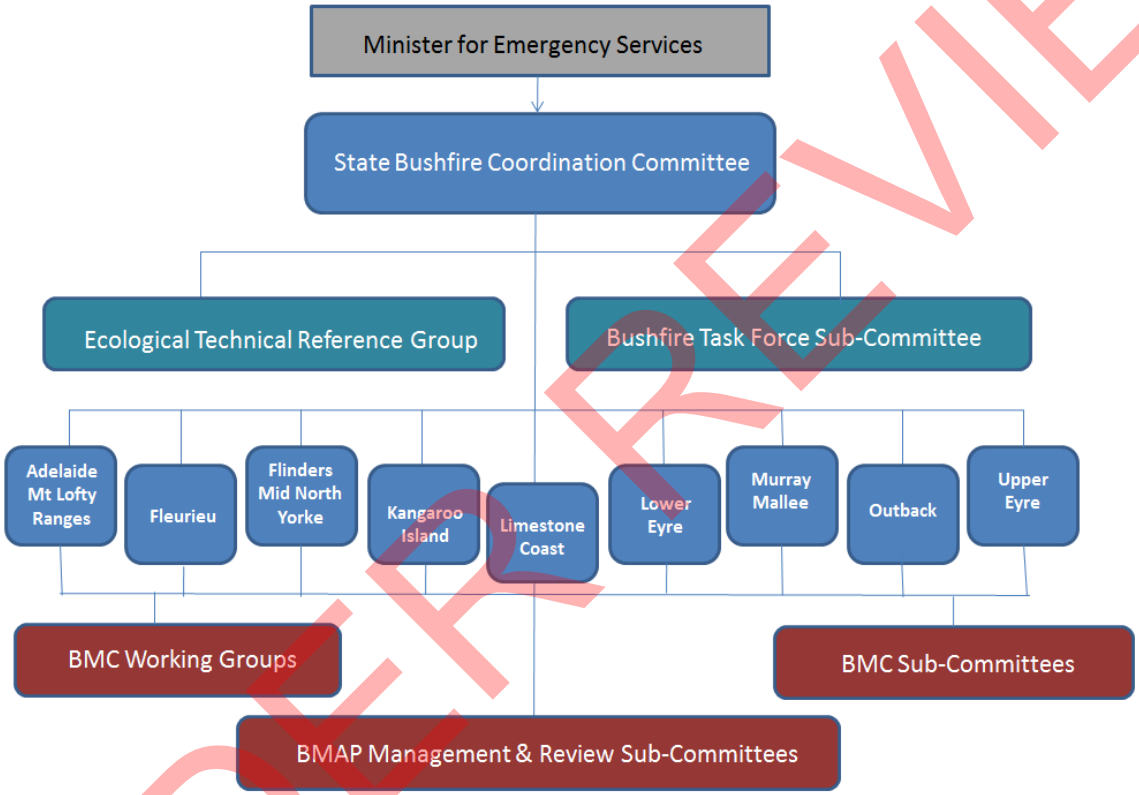


Figure 1 The reporting relationships for the legislated BMAP process in South Australia

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BUSHFIRE MANAGEMENT AREAS

Pursuant to s.72 of *FESA* 2005, the Governor, on the basis of recommendation from the SBCC, has proclaimed nine Bushfire Management Areas [BMAs] for South Australia. The Governor also has the power to vary the boundaries of a BMA or abolish a BMA on the basis that a new division is to occur. For a map of the BMA boundaries see **Appendix 1**. BMAs have been defined on the basis of the following criteria:

- No local Council is represented in more than one BMA
- Alignment with SA Government Regions has been sought wherever possible
- BMAs have a similarity of bushfire management issues, including: bushfire risk, land form, climate, fuel type and land use.

The nine BMAs identified for South Australia are as follows:

BMA	**Included Local Government Areas**
Limestone Coast	Grant, Mount Gambier, Naracoorte Lucindale, Wattle Range, Robe, Kingston, Tatiara. (7)
Murray Mallee	Coorong, Southern Mallee, Karoonda East Murray, Murray Bridge, Mid Murray, Renmark Paringa, Loxton Waikerie, Berri Barmera. (8) (A separate management group for Ngarkat CP has been established)
Fleurieu	Yankalilla, Victor Harbor, Alexandrina. (3)
Kangaroo Island	Kangaroo Island (1)
Adelaide Mount Lofty Ranges	Onkaparinga, Mount Barker, Marion, Mitcham, Burnside, Adelaide Hills, Campbelltown, Tea Tree Gully, Salisbury, Playford, Gawler, Barossa. (12)
Flinders, Yorke, and Mid North	Yorke Peninsula, Copper Coast, Barunga West, Wakefield, Mallala, Light, Clare and Gilbert Valleys, Goyder, Port Pirie, Northern Areas, Peterborough, Mount Remarkable, Flinders Ranges, Port Augusta, Carrieton Orroroo. (15)
Lower Eyre Peninsula	Lower Eyre Peninsula, Port Lincoln, Tumby Bay. (3)
Upper Eyre Peninsula	Whyalla, Franklin Harbour, Cleve, Kimba, Elliston, Wuddina, Streaky Bay, Ceduna. (8)
Outback	Roxby Downs, Coober Pedy, Outback Areas Authority. (3)

** Note that the membership of the BMCs as presented in the above table are subject to the resolutions regarding the Designated Urban Bushfire Risk Areas [DUBRAs] - refer below.*

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DESIGNATED URBAN BUSHFIRE RISK AREAS

The *FESA 2005* provides for 'designated urban bushfire risk areas' [DUBRAs], which are designated by SAFECOM under Section 4A of the Act, and gazetted following consultation with the Chief Officers of the SAMFS, the SACFS, the relevant Minister and relevant local Councils.

In practice, DUBRAs fall within the response area for the SAMFS, and represent sections of the peri-urban interface around metropolitan Adelaide and some regional centres where bushfire risk has been identified. DUBRAs form part of the relevant BMA in which they are located. A list of DUBRAs will be included in these Guidelines in summary form once the DUBRAs are finalised.

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PART TWO: STATE BUSHFIRE COORDINATION COMMITTEE

The State Bushfire Coordination Committee (SBCC) is a statutory body established under the *FESA* to formulate and oversee a framework for coordination of bushfire management in each Bushfire Management Area [BMA] in South Australia. The *FESA* establishes the composition of the SBCC and details its functions.

SBCC COMPOSITION

Pursuant to s.71 (2) of the FES Act 2005, the SBCC consists of:

(a) the **Chief Officer of South Australian Country Fire Service [SACFS]** (*ex officio*) (who will be the presiding member of the committee); and

(b) the following members, appointed by the Governor:

(i) 1 officer of **South Australian Metropolitan Fire Service [SAMFS]**, nominated by SAMFS;

(ii) 1 officer of **SACFS** (not being an officer who holds office as a volunteer member of SACFS), nominated by SACFS;

(iii) 1 volunteer member of SACFS, nominated by the **CFS Volunteers Association [CFSVA];**

(iv) 1 police officer, nominated by **South Australia Police [SAPOL]**;

(v) 1 officer of the administrative unit of the Public Service primarily responsible for assisting the relevant Minister in the administration of the ***National Parks and Wildlife Act 1972***, nominated by the Chief Executive of that administrative unit;

(vi) 1 officer of the **South Australian Forestry Corporation [SAFC]**, nominated by the SAFC;

(vii) 1 officer of the administrative unit of the Public Service primarily responsible for assisting the relevant Minister in the administration of the ***Highways Act 1926***, nominated by the Chief Executive of that administrative unit;

(viii) 1 officer of the administrative unit of the Public Service primarily responsible for assisting the relevant Minister in the administration of the ***Electricity Act 1996***, nominated by the Chief Executive of that administrative unit;

(ix) 1 officer of the administrative unit of the Public Service primarily responsible for assisting the relevant Minister in the administration of the ***Development Act 1993*** with experience in development in bushfire prone areas, nominated by the Chief Executive of that administrative unit;

(x) 1 officer of the administrative unit of the Public Service primarily responsible for assisting the relevant Minister in the administration of the ***Natural Resources Management Act 2004***, nominated by the Chief Executive of that administrative unit;

(xi) 1 officer of the administrative unit of the Public Service primarily responsible for assisting the relevant Minister in the administration of **Primary Industry** in the State, nominated by the Chief Executive of that administrative unit;

(xii) 1 officer of the **South Australian Water Corporation [SAW]**, nominated by the South Australian Water Corporation;

(xiii) 1 person nominated by the **Bureau of Meteorology [BoM]**;

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(xiv) 1 person nominated by the **Local Government Association [LGA]**;

(xv) 1 person nominated by the **Native Vegetation Council [NVC]**;

(xvi) 1 person nominated by the **Outback Areas Community Development Trust [OACDT]**;

(xvii) 1 person nominated by **Primary Producers SA Incorporated [PPSA]**;

(xviii) 1 person nominated by the **Conservation Council of South Australia Incorporated [CCSA]**.

SBCC MEMBERSHIP INFORMATION

SBCC CHANGE OF MEMBERSHIP

The membership of the SBCC is reviewed and changed every three years according to the *FESA* legislation. The agencies and organisations represented on the SBCC must submit a nominee and deputy, who are able to provide advice to the SBCC and make decisions with regard to bushfire management. The change of membership must be accepted by the Minister of Emergency Services and gazetted prior to the new members sitting at the first meeting.

INDUCTION OF NEW MEMBERS

New SBCC members will be guided through an induction process in order to provide them with the information required to understand the process of bushfire management planning over which they will preside. They will be informed of their roles and responsibilities while sitting on the SBCC, informed of the bushfire management planning process and updated with regard to pertinent business matters and the status of the BMAPs that have been adopted by the SBCC. By doing so, the new members will be able to provide relevant and appropriate advice or comment to the SBCC.

MEMBERSHIP VACANCY

Section 71 of FESA states:

(5) The Governor may remove an appointed member from office—
(a) for a breach of, or non-compliance with, a condition of appointment; or
(b) for mental or physical incapacity to carry out official duties satisfactorily; or
(c) for neglect of duty; or
(d) for misconduct.

(6) The office of an appointed member becomes vacant if the member—
(a) dies; or
(b) completes a term of office and is not reappointed; or
(c) resigns by written notice to the Minister; or
(d) is removed from office under subsection (5).

(7) On the office of a member becoming vacant, a person must be appointed in accordance with this Act to the vacant office.

(8) The Governor may appoint a suitable person to be a deputy of a member of the State Bushfire Coordination Committee.

At the conclusion or a term of appointment of the SBCC the Minister will in writing request Chief Executives and Head of Agencies to provide nominees to fill positions on the SBCC. Where a person vacates a position mid-term and a casual vacancy exists the EO will issue an invitation in writing to the relevant organisation.

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SBCC FUNCTIONS

The State Bushfire Coordination Committee (SBCC) has the following functions designated under section 71A of the *Fire and Emergency Services Act 2005* (SA).

(a) to advise the Minister on bushfire prevention in the country and in designated urban bushfire risk areas;

(b) to advise the Minister on matters related to bushfire management;

(c) as far as reasonably practicable – to promote the state-wide coordination and integration of policies, practices and strategies relating to bushfire management activities;

(d) to provide guidance, direction and advice to bushfire management committees and to resolve any issues that may arise between 2 or more bushfire management committees;

(e) to prepare, and to keep under review, the State Bushfire Management Plan and to keep under review the extent to which-

(i) Bushfire Management Area Plans; and

(ii) policies, practices and strategies adopted or applied by bushfire management committees,

are consistent with the State Bushfire Management Plan;

(f) to oversee the implementation of the State Bushfire Management Plan and to report to the Minister on any failure or delay in relation to the implementation of the plan;

(g) to prepare, or initiate the development of, other plans, policies, practices, codes or practice or strategies to promote effective bushfire management within the State;

(h) to convene forums to discuss bushfire management issues, and to promote public awareness of the need to ensure proper bushfire management within the State;

(i) at the request of the Minister, or on its own initiative, to provide a report on any matter relevant to bushfire management;

to carry out any other function assigned to the State Bushfire Coordination Committee under this or any other Act of by the Minister.

SBCC ADMINISTRATION

The SBCC is legislated to be chaired by the Chief Officer of the SACFS. If the Chair is not available for a scheduled meeting it is the responsibility of the Committee to elect an acting Chair prior to the meeting. The Executive Officer [EO] of the SBCC supports the Chair, tables the agenda and provides all members a copy of the previous meeting minutes and relevant correspondence for deliberation prior to the meeting.

Members are required to attend a majority of meetings and may attend via teleconference. The quorum required for an SBCC meeting is half of its members, plus one. The EO determines if there is a quorum prior to the commencement of the meeting and should there not be a quorum the meeting will be rescheduled. If a member cannot attend a meeting, the appointed deputy must be engaged to attend with apologies submitted to the EO as soon as practical prior to the scheduled meeting.

Notice of meeting time and date will be provided to SBCC members at least 14 days prior to the meeting. An agenda, business papers and copies of minutes from the last meeting should be circulated to

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members at least 7 days before the meeting.

Observers and guests may attend at the request or invitation of the SBCC. They may not participate in the meeting unless permitted by the Chair.

SITTING FEES AND TRAVEL EXPENSES

SBCC members are entitled to sitting fees and travel expenses in accordance with the Commissioners' Standard 3.2.[1] The sitting fees are determined by the Department of Premier and Cabinet [DPC] in accordance with standard Government of South Australia process. Should a SBCC member wish to claim sitting fees or travel reimbursement, they will need to request a disbursement form, tax file declaration form and a Sitting Fee form from the SBCC Executive Officer [EO] prior to their first meeting. These forms are required to be submitted to the SBCC EO at the first meeting.

DISCLOSURE OF CONFLICTS OF INTEREST

The term 'conflict of interest' refers to situations where a conflict arises between the duty of the SBCC member and a private interest which could influence the performance of their duties and responsibilities. Conflict of interests can be classified as pecuniary interests or personal interests (i.e. non-pecuniary).

A pecuniary interest involves a private financial holding, such as owning a company or shares in a company, owning land or being employed by an organisation that has an interest in the issues raised at a SBCC meeting. A non-pecuniary, or personal, interest includes situations where they themselves or family members are employed or involved in the issues raised.

Members of the SBCC need to be aware of the potential conflicts between their role on the SBCC and their other interests.

The *Public Corporations Act 1993 (SA)* requires the disclosure of interests by members of Government appointed boards and committees. Committee members who have direct or indirect pecuniary or personal interest in a matter decided or under consideration by the committee must:

- As soon as reasonably practicable, disclose to the committee full and accurate details of the interest.
- Not take part in any discussion by the committee relating to the matter or vote on it.
- Be absent from the meeting room when any such discussion or voting is taking place.

Details of any disclosure of the nature of the interest in any matter made, or absence due to conflict of interest, must be recorded in the meeting minutes. In addition, the Declaration of Pecuniary or Personal Interest form must be completed and submitted to the SBCC EO as soon as practical.

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[1] Commissioner for Public Employment (22 December 2016), *Commissioner's Standard 3.2 - Response and Safe Employment Conditions:* *Remuneration - Allowances and Reimbursements*,

PROTECTION FROM LIABILITY

Section 127 of the Act provides protection from liability for SBCC members:

(1) No civil or criminal liability will attach to a member of an emergency services organisation, a person appointed or authorised to act under this Act by the Commission, or other person for an honest act or omission—

(a) in the exercise or discharge, or purported exercise or discharge, of a power or function under this Act; or

(b) in the carrying out of any direction or requirement given or imposed at the scene of a fire or other emergency.

(2) A liability that would, but for subsection (1), lie against a person lies instead against the Crown.

(3) A person (the "injured person") who suffers injury, loss or damage as a result of the act or omission of a member of an emergency services organisation who is a volunteer may not sue the member personally unless—

(a) it is clear from the circumstances of the case that the immunity conferred by subsection (1) does not extend to the case; or

(b) the injured person brings an action in the first instance against the Crown but the Crown then disputes, in a defence filed to the action, that it is liable for the act or omission of the member.

(4) Without limiting subsection (1), no liability attaches to SACFS, the State Bushfire Coordination Committee, a bushfire management committee or a council (or the members of any of them) by virtue of the fact that a bushfire prevention plan—

(a) has not been prepared under this Act in relation to a particular part of this State; or

(b) has been so prepared but has not been implemented, or fully implemented.

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PART THREE: BUSHFIRE MANAGEMENT COMMITTEES

Section 72A of the *FESA* requires that the SBCC establish a Bushfire Management Committee [BMC] for each BMA. BMCs are responsible for preparing and maintaining a strategic, risk-based Bushfire Management Area Plan [BMAP] in their designated Bushfire Management Area [BMA], as determined but the SBCC and based on the State Bushfire Management Plan [SBMP].

Bushfire Management Committees [BMC] have a critical role in landscape scale, strategic bushfire management. Their key function is to bring together all relevant agencies and organisations with a direct interest in bushfire management, and facilitate a coordinated and collaborative approach to bushfire management planning and implementation of mitigation strategies.

Each BMC is responsible for ensuring that the bushfire management issues in their BMA are addressed to the best of the ability and capacity of all of their member agencies and organisations, with the ultimate aim of improving bushfire safety for the community within their BMA.

BMC COMPOSITION

The Minister for Emergency Services has approved a three-year term for BMC members.

Pursuant to s.72A(2), the SBCC has determined that the composition of each BMC shall be as follows:

i. *A Regional Officer of the SACFS*
ii. *An Executive Officer from the SACFS*
iii. *A senior CFS Officer(s), who is a volunteer, nominated by the CFS VA, with a maximum of two*
iv. *Any Local Government Authority will be required to have a nominee. The nominee is to be a Chief Executive Officer or a Senior Manager within a Council.*
v. *A Manager of the SAMFS, where applicable*
vi. *An Officer from ForestrySA, where applicable*
vii. *An Officer from the DEWNR*
viii. *A landholder recommended by the South Australian Farmers Federation (Primary Producers South Australia)*
ix. *An Officer of the SAPOL*
x. *An Officer from the Department for Transport, Energy and Infrastructure, where applicable*
xi. *A person nominated by the Natural Resource Management Board(s);*
xii. *An Officer of SA Water, where applicable*
xiii. *A person nominated by the Conservation Council of South Australia, where applicable*
xiv. *On the approval of the State Bushfire Coordination Committee, a member(s) sought by nomination from the community to fill skills required for the effective operation of the Committee*
xv. *Any other person with relevant bushfire management or responsibility and experience, as approved by the SBCC, including but not limited to:*
    - *for the Limestone Coast, a person who will be a non ForestrySA representative of the Forest Owners Conference*
    - *persons representing Traditional Owners, where appropriate*
    - *a person representing the Australian Government, where applicable*
    - *a person representing the Defence forces, where applicable*
    - *a person representing the mining industry, where applicable*

The composition of each BMC will vary to some degree based upon the relevance of the membership categories to the BMA in question.

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DEPUTY BMC MEMBERS

In accordance with s72A(7), deputies should be nominated and appointed for each member of the BMC. The EO will send a letter to relevant organisations/agencies inviting nomination of a BMC member and deputy. It is at this time that appropriate authorised persons' names are submitted to the BMC for consideration.

The BMC member must inform their deputy of what they may or may not discuss, report or commit to on their behalf. The deputy has the same voting rights and responsibilities as the member. The member needs to ensure that their deputy understands the role of the BMC in bushfire management planning and the implications of its deliberations and decisions.

Sending a deputy must not become a standard practice.

BMC MEMBERSHIP CHANGES

ADDING ADDITIONAL MEMBERS

If a BMC wishes to add members other than those specifically provided for by the SBCC, then it must seek the approval of the SBCC. The request must be made in writing to the SBCC, explaining the reasons for requesting the additional member(s). In determining whether to allow any additional member, the SBCC will consider the desirability of the addition and will particularly consider whether the need could be satisfied in some other manner (such as the person to attending meetings as an observer).

REMOVING MEMBERS

The SBCC may remove members from a BMC for any reasonable cause (section 72A(4)). If a member is failing to adequately participate in BMC business, the Committee should attempt to resolve the situation with the individual concerned, through their organisation/agency, or within the BMC, and as a last resort by requesting the assistance of the SBCC. The SBCC may give a direction to an organisation/agency to provide a substitute representative if problems cannot be satisfactorily resolved.

MEMBERSHIP VACANCY

This section, 'Membership Vacancy', has been wholly rescinded and replaced by the November 2021 Amendment to SBCC and BMC Guidelines - BMC Mid-Term Membership Management Procedure, which now forms Appendix 4. Hover over text for weblink.

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CHANGING THE NAME OF A BMC

A BMC has no authority to change the name of a BMC. However, a BMC may request a name change in writing to the SBCC, explaining the reasons for the requested change. The decision to change the name of a BMC will be made at the sole discretion of the SBCC.

CHANGES TO BMC STRUCTURES

BMCs are based upon Bushfire Management Areas (BMAs) are determined by the SBCC and proclaimed by the Governor. In the event that a BMC believes that a variation should be made to a BMA, written submission should be made to the SBCC outlining in detail the reasons for the requested variation.

BMC FUNCTIONS

BMC FUNCTIONS

Bushfire Management Committees have the following functions under s.72B of the *FESA 2005:*

(a) to advise the State Bushfire Coordination Committee on bushfire prevention in its area;

(b) to promote the coordination of policies, practices and strategies relating to bushfire management activities within its area;

(c) to prepare, and to keep under review, a Bushfire Management Area Plan for its area, and to ensure that this plan is consistent with the State Bushfire Management Plan;

(d) to oversee the implementation of its Bushfire Management Area Plan and to report to the State Bushfire Coordination Committee or, if it thinks fit, to the Minister, on any failure or delay in relation to the implementation of the plan;

(e) to prepare, or initiate the development of, other plans, policies, practices or strategies to promote effective bushfire management within its area;

(f) to convene local or regional forums to discuss issues associated with bushfire management within its area, and to work with local communities to promote and improve effective bushfire management;

(g) at the request of the Minister or the State Bushfire Coordination Committee, or on its own initiative, to provide a report on any matter relevant to bushfire management within its area;

(h) to carry out any other function assigned to the bushfire management committee under this or any other Act, by the Minister or by the State Bushfire Coordination Committee.

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BMC RESPONSIBILITY TO THE SBCC AND BMAPS

BMC AND SBCC RESPONSIBILITIES

Under s 72B of the *FESA 2005*, the BMCs have the following responsibilities to the SBCC:

a) *Operate in accordance with all guidelines and instructions by the SBCC.*
b) *Submit draft BMAPs to the SBCC for endorsement in accordance with guidelines approved by the SBCC and the FESA 2005.*
c) *Submit reports as required by the SBCC.*
d) *Refer issues and recommendations with wider policy implications to the SBCC where necessary.*
e) *Refer any relevant matters to the SBCC for consideration and their information.*
f) *Provide copies of minutes of the BMC meetings to the SBCC.*
g) *Provide regular activity reports to the SBCC*

The BMCs are required under Section 72B of the FESA 2005 to report on their bushfire prevention activities and other matters relevant to bushfire management in their area. The SBCC specifies the reporting requirements for each BMC.

BMC AND BMAPS

Section 72B of the *FESA 2005* requires a BMAP to be prepared and regularly reviewed for each BMA. Section 73A (extracted below) stipulates the BMCs responsibilities for BMAPs.

73A—Bushfire Management Area Plans

(1) Each bushfire management committee must prepare and maintain a Bushfire Management Area Plan for its area.

(2) The plan must set out a scheme for bushfire management within its area.

(3) Without limiting subsection (2), the plan must—

(a) identify existing or potential risks to people and communities within its area from bushfire; and

(b) outline strategies to achieve appropriate hazard reduction associated with bushfire management within its area, especially through a coordinated and cooperative approach to bushfire prevention and mitigation; and

(c) identify action that should be taken by persons, agencies and authorities to achieve appropriate standards of bushfire management within its area; and

(d) without limiting paragraphs(b) and(c), establish or adopt principles and standards to guide or measure the successful implementation of bushfire management strategies and initiatives; and

(e) include or address other matters prescribed by the regulations or specified by the State Bushfire Coordination Committee.

(4) The plan must be consistent with—

(a) the State Bushfire Management Plan; and

(b) such other plans, policies or strategies as may be prescribed by the regulations for the purposes of this paragraph.

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(5) A bushfire management committee must review its plan—

(a) at least once in every 4 years; or

(b) at the direction of the State Bushfire Coordination Committee.

(6) Subject to subsection (7), a bushfire management committee may amend its plan at any time.

(7) A bushfire management committee must, in relation to a proposal to create or amend its plan—

(a) prepare a draft of its proposal; and

(b) take reasonable steps to consult with—

(i) the State Bushfire Coordination Committee; and

(ii) any SACFS organisation specified by the Chief Officer of SACFS; and

(iii) a public sector agency (within the meaning of the Public Sector Act 2009) designated by the Minister from time to time for the purposes of this subsection; and

(iv) any council whose area is wholly or partly within the relevant bushfire management area; and

(v) any regional NRM board whose region is wholly or partly within the relevant bushfire management area; and

(vi) any other person or body, or person or body of a class, prescribed by the regulations for the purposes of this subsection,

in relation to the proposal; and

(c) by public notice, give notice of the place or places at which copies of the draft are available for inspection (without charge) and purchase and invite interested persons to make written representations on the proposal within a period prescribed by the regulations.

(8) Subsection (7) does not apply in relation to an amendment that is being made—

(a) in order to ensure that the plan is consistent with a change to the State Bushfire Management Plan; or

(b) in order to remove or replace information in the plan that has been superseded by information that is more reliable or up-to-date; or

(c) in order to make a change in form; or

(d) in any other prescribed circumstance.

(9) A plan, and any amendments to a plan, have no force or effect until approved by the State Bushfire Coordination Committee.

(10) The State Bushfire Coordination Committee may, in connection with subsection (9)—

(a) approve a plan or amendment when it is furnished to the State Bushfire Coordination Committee;

(b) consult the relevant bushfire management committee about any amendment to a proposed plan or amendment that the State Bushfire Coordination Committee considers necessary or appropriate and then approve the plan or amendment with amendment;

(c) refer a plan or amendment back to the relevant bushfire management committee for further consideration.

(11) A plan is an expression of policy and does not in itself affect rights or liabilities (whether of a substantive, procedural or other nature).

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(12) A failure by a bushfire management committee to comply with a requirement under this section cannot be taken to affect the validity of a plan, or any other plan or instrument under this Act.

The SBCC determines the process for development of BMAPs and issues guidelines to assist the planning process. Further detail regarding this process can be found in the **Bushfire Management Area Plan Handbook**.

BMAPs require approval by the SBCC and constant reference must be made by the BMCs to this plan to ensure that all functions of the Committee are being met by all parties. BMCs should be aware of any delay in completion of treatment strategies identified in their BMAP and recommend amendments to timelines contained in the plan to compensate for these delays. Committee members should be prepared to accept comments and suggestions from the BMC as to recommended variations to their annual works programmes, in order to best serve the interests of the community as a whole.

The BMAPs should assist in driving land managers' programmes in terms of bushfire risk management on an ongoing basis, and regular reports should be made regarding the progress of the plan at each BMC meeting.

BMC MEMBER ROLES AND RESPONSIBILITIES

BMC members are required to collaboratively provide insight into bushfire risk management with regard to their expertise in the area. Individual BMC members' input in to the BMAP process is integral to bushfire management planning. See also **Appendix 3 –** Summary Fact Sheet for BMC Members.

AN ORGANISATION/AGENCY'S RESPONSIBILITY TO THEIR BMC REPRESENTATIVE

It is the responsibility of each individual BMC member to negotiate with their organisation/agency the extent and manner of the support to be provided to the BMC. All bushfire management issues that would require substantial commitment of funds or resources, or a significant change to a policy position, will be identified in the agenda prior to a BMC meeting. A BMC member is then able to consult with more senior staff from their organisation/agency, if necessary, to determine their position so that the member is able to speak with authority at the meeting.

To ensure that members are able to make a meaningful input into the BMC, the organisation/agency should:

a) Ensure that their representatives are adequately trained and provided with information on organisation/agency policies and relevant legislation.
b) Ensure that the position and views of their organisation/agency are available to the BMC to assist with deliberations.
c) Negotiate with their organisation/agency the extent and manner of the reporting required.
d) Provide resources (including manuals and guidelines), technical advice and support in resolving issues.
e) After consultation with senior staff members, give the BMC member authority to discuss, commit support and participate in decision making relating to specific bushfire management agenda items.

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RESPONSIBILITY OF BMC MEMBERS TO THEIR ORGANISATION/AGENCY

From a BMC perspective, BMC members have the following responsibilities to their organisation/agency:

a) Inform of local issues that may be pertinent to organisation/agency bushfire policy and program objectives, including media reporting.
b) Report BMC activities and decisions to their organisation/agency on a regular basis.
c) Keep up to date on current bushfire management policy, conservation objectives, fire ecology and bushfire management research.

REPRESENTATION OF ORGANISATIONS/AGENCIES

It is the individual committee members' responsibility to ensure that the BMC understands the roles and responsibilities of the individual organisation/agency in terms of bushfire management activities. At initial BMC meetings with new membership, all members should be invited to provide an overview of their professional background and their organisation/agency's responsibilities in terms of bushfire management. This could be done verbally, or through circulation of a brief written statement prior to the meeting.

Each member should express the full range of opinions and needs of their organisation/agency, including the risk of adopting or not adopting particular courses of action.

BMC MEMBER CONTRIBUTION TO THE BMC

Although the SACFS is responsible for providing an officer of SACFS to undertake the role of Chairperson and EO under s 72A of the *FESA*, all members of the BMC have equal responsibilities. All members of the BMC are responsible for getting the Committees' business done. The work of the BMC must be carried out in a timely fashion, meaning that managing timeframes and delivering deliverables are a shared responsibility. Each individual member of a BMC is responsible for the carriage and discharge of the Committees' obligations on behalf of their organisation/agency.

PARTICIPATION IN DECISION MAKING

The BMC is required to conduct its business on the basis of consensus decision making and members should:

- Participate and communicate constructively to achieve consensus on all issues.
- Help develop and use mechanisms that encourage resolution of issues.
- Work together inclusively and cooperatively.
- Negotiate with other members to resolve issues of conflict and make balanced decisions.

Members have a dual role to provide expertise on behalf of an individual organisation/agency and commitment from individual organisations/agencies' in terms of bushfire management and works.

Any deliberations and decisions of the BMC should be made on the basis of the best outcome for the community. Individual members are required to keep this clearly in mind to ensure that the best bushfire management outcome is achieved.

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CONFIDENTIAL INFORMATION

BMC members must respect the confidentiality of deliberations and privileged information that may be provided during the course of Committee business. Members must make available to the BMC all data [e.g. digital data layers containing asset or fire track location and detail] and information of which they are aware that is relevant to the BMC's work, excepting privileged 'commercial in confidence' information.

REPORTING

BMC members are required to report back to their organisation/agency, informing them of the decisions of the BMC, and to provide regular feedback to the BMC from their organisation/agency. Pertinent to this is seeking opinion on BMC activities from senior members of the organisation/agency. Members must also provide regular reports to the BMC regarding relevant activities of their organisation/agency with regards to the BMAP and bushfire management.

FIRE TRACK REGISTER

All BMCs should have a current and regularly maintained fire track register, developed in accordance with SBCC guidelines, including the Government Agencies Fire Management Working Group Fire Breaks and Fire Access Tracks standard. An adequate access network of fire tracks for firefighting vehicles is essential for the protection of the community and its assets. The fire track register must regularly be reviewed by the BMCs, at least annually prior to the Fire Danger Season, with particular attention to any changes to land management regimes that may warrant amendments to the register.

BMC ADMINISTRATION

The BMC is chaired by the relevant Regional Commander of the SACFS. If the Chair is not available for a scheduled meeting it is the responsibility of the BMC to elect an acting Chair prior to the meeting.

The BMC members are required to attend a majority of meetings. Members may attend via teleconference. The quorum required for a BMC meeting is half of the currently filled seats on the committee, plus one. Should there not be a quorum the meeting may still proceed, but no business will be able to be formalised, and any resolution must be formally considered by the committee when quorum is able to be achieved.

Notice of meeting time and date will be provided to BMC members at least 14 days prior to the meeting. An agenda, business papers and copies of minutes from the last meeting should be circulated to members at least 7 days before the meeting.

Observers and guests may attend at the request or invitation of the SBCC. They may not participate in the meeting unless permitted by the Chair.

BMC quorum requirements rescinded and updated (15 November 2024).

SITTING FEES AND TRAVEL EXPENSES

BMC members are entitled to sitting fees and travel expenses in accordance with the Commissioners' Standard 3.2.[2] The sitting fees are determined by the Department of Premier and Cabinet [DPC] in accordance with standard Government of South Australia process. Should a BMC member wish to claim sitting fees or travel reimbursement, they will need to request a

[2] Commissioner for Public Employment (22 December 2016), *Commissioner's Standard 3.2 - Response and Safe Employment Conditions:* Remuneration - Allowances and Reimbursements,

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disbursement form, tax file declaration form and a Sitting Fee form from the BMC Executive Officer [EO] prior to their first meeting. These forms are required to be submitted to the BMC EO at the first meeting.

DISCLOSURE OF CONFLICTS OF INTEREST

The term 'conflict of interest' refers to situations where a conflict arises between the duty of the BMC member and a private interest which could influence the performance of their duties and responsibilities. Conflict of interests can be classified as pecuniary interests or personal interests (i.e. non-pecuniary).

A pecuniary interest involves a private financial holding, such as owning a company or shares in a company, owning land or being employed by an organisation that has an interest in the issues raised at a BMC meeting. A non-pecuniary, or personal, interest includes situations where they themselves or family members are employed or involved in the issues raised.

Members of the BMC need to be aware of the potential conflicts between their role on the BMC and their other interests.

The *Public Corporations Act 1993 (SA)* requires the disclosure of interests by members of Government appointed boards and committees. Committee members who have direct or indirect pecuniary or personal interest in a matter decided or under consideration by the committee must:

(a) As soon as reasonably practicable, disclose to the committee full and accurate details of the interest.
(b) Not take part in any discussion by the committee relating to the matter or vote on it.
(c) Be absent from the meeting room when any such discussion or voting is taking place.

Details of any disclosure of the nature of the interest in any matter made, or absence due to conflict of interest, must be recorded in the meeting minutes. In addition, the Declaration of Pecuniary or Personal Interest form must be completed and submitted to the BMC EO as soon as practical.

PROTECTION FROM LIABILITY

Section 127 of the *FESA* provides protection from liability for BMC members:

> *(1) No civil or criminal liability will attach to a member of an emergency services organisation, a person appointed or authorised to act under this Act by the Commission, or other person for an honest act or omission—*
> *(a) in the exercise or discharge, or purported exercise or discharge, of a power or function under this Act; or*
> *(b) in the carrying out of any direction or requirement given or imposed at the scene of a fire or other emergency.*
> *(2) A liability that would, but for subsection (1), lie against a person lies instead against the Crown.*
> *(3) A person (the "injured person") who suffers injury, loss or damage as a result of the act or omission of a member of an emergency services organisation who is a volunteer may not sue the member personally unless—*
> *(a) it is clear from the circumstances of the case that the immunity conferred by subsection (1) does not extend to the case; or*
> *(b) the injured person brings an action in the first instance against the Crown but the Crown then disputes, in a defence filed to the action, that it is liable for the act or omission of the member.*
> *(4) Without limiting subsection (1), no liability attaches to SACFS, the State Bushfire Coordination Committee, a bushfire management committee or a council (or the*

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members of any of them) by virtue of the fact that a bushfire prevention plan—

(a) has not been prepared under this Act in relation to a particular part of this State; or

(b) has been so prepared but has not been implemented, or fully implemented.

MEETING PROTOCOLS

MEETING ATTENDANCE

It is the responsibility of the individual committee member to be punctual and to attend meetings regularly. It is also the responsibility of the individual committee member to make an 'apology' if they cannot attend and to send their deputy. Only unavoidable circumstances should be an appropriate reason for non-attendance to meetings and sending a deputy should not be a common practice. Non-attendance of BMC members puts the Committee at risk of being without a quorum where valid business cannot be conducted and valuable time is wasted for other BMC members.

If members cannot attend regularly or find they have other commitments, it is their responsibility to find an appropriate person from their organisation/agency that can replace them. Or, if their organisation/agency's interest is only on isolated issues, the agency may advise the BMC that it does not wish to provide a member, but ask to have an observer to attend meetings when relevant issues arise. If the organisation/agency making this request is prescribed in the composition of the BMC, the BMC will need to consider the request and determine whether a request for exemption from membership should be made to the SBCC.

MEETING PREPARATION

It is the individual members' responsibility to read the minutes of the previous meeting, together with the agenda and any associated papers circulated prior to the meeting.

Any queries or business arising should be notified to the EO to ensure they are included as an agenda item if necessary. It is also the individual committee member's responsibility to check the previous minutes for any actions they were required to follow up and to report on the progress of these actions at the meetings.

CONTRIBUTION OF RESOURCES

BMC members are expected to contribute their organisation/agency's resources to assist the BMC carry out its responsibilities. This may involve sharing costs and facilities for BMAP administration and implementation purposes and also the provision of technical skills if required.

MEETING NOTICES, AGENDAS AND REPORTS

BMC members should be provided with background information sufficient to be prepared for meetings and for the business at hand by the EO. All meeting notices, agendas, reports and any business papers relevant to any issues to be discussed at meetings will be disseminated prior to the next meeting. Any information provided to the BMC via the EO will be distributed to members out of session as soon as it is received.

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BMC members will receive copies of draft and adopted minutes. Minutes of previous meetings are circulated as 'draft' minutes as soon as possible after meetings and adopted as being true and correct at the next meeting.

NEW BMC MEMBERS

PROVISION OF INFORMATION

All new BMC members will be provided with the following information:

(a) a copy of these Guidelines
(b) Bushfire Management Area Plan Handbook
(c) a copy of any relevant BMAP currently in preparation or under review
(d) a copy of current State Bushfire Management Plan [SBMP], and any draft plan currently in preparation
(e) a copy of any relevant SBCC policies
(f) a copy of the last set of meeting minutes (and then each subsequent)
(g) a list of all current BMC members and their contact details
(h) a copy of relevant legislation, including the *FESA*

INDUCTION OF BMC MEMBERS

BMC members will be provided with an introduction to the BMC by the EO, including an explanation of:

(a) The purpose and functions of the BMC
(b) The BMC's area of responsibility
(c) The structure of the BMC (i.e. the members and the organisations/agencies they represent; any sub-committees and working groups and their composition and functions)
(d) Protocols relating to the management and administration of the BMC
(e) Any current planning, plans and activities of the BMC
(f) The legislative framework within which the BMC operates
(g) BMC member roles and responsibilities to the Committee and their organisation/agency

BMC SUB-COMMITTEES AND WORKING GROUPS

Formation of BMC Sub-Committee may be considered for the ongoing management of specific matters by a BMC. Working Groups should be formed to undertake tasks over an identified time frame, rather than being maintained as ongoing structures.

For working groups and sub-committees the decision as to whether formal minutes are taken or just a summary of discussions depends on the individual group, the convener and the purpose of the group. Either way, some form of records for working groups and sub-committees must be kept.

Full Terms of Reference for Sub-Committees and Workings can be found in PART SIX: **Terms of Reference for Committees.**

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SUB-COMMITTEES

A BMC may make a written request to the SBCC to form a sub-committee for a specific purpose related to any matter within its BMA where that purpose requires ongoing specific attention that cannot otherwise be effectively managed by the BMC. Any such request to the SBCC must clearly state the reasons for the sub-committee and identify why the matter cannot be addressed by the BMC in its normal course of business.

At least three of members of a sub-committee must be members of the BMC; other members of a sub-committee may be drawn from outside the BMC. The BMC EO shall also be the EO for each sub-committee providing a consistent link between the BMC and the sub-committee. In the case of a sub- committee existing between two BMCs, the executive officers may determine whether the committee is jointly managed, or managed solely by one of the two executive officers.

The instrument of delegation to a sub-committee must specify the extent of decision-making powers held by that committee. Terms of Reference included in this guide are to be engaged when a sub-committee is formed. The procedures for calling BMC sub-committee meetings and conduct of meetings are to be determined by the sub-committee itself (subject to the direction from the BMC). Sub-committees must provide copies of their minutes to the BMC.

Due to the ongoing resourcing requirements associated with the formation and management of sub-committees, the use of task based working groups will generally be preferred.

WORKING GROUPS

The BMC may form task-based working groups to assist it in the exercise of its functions without the specific approval of the SBCC. Working groups are established to carry out a particular task or tasks, and once complete, are then wound up and cease to exist. A timeframe must be set for the conclusion of a working group at the time of its formation. They may operate for a very short time, or longer periods in excess of 12 months.

The BMC must endorse a written statement including:

(a) tasks to be undertaken by a working group;
(b) reporting requirements of the working group to the BMC;
(c) timeframe for conclusion of the working group's activities.

A template for this documentation is supplied in PART SEVEN: **Meeting Templates & Forms** of this these Guidelines.

At least one of the members of a working group must be a member of the BMC the other members are to be made up of stakeholders with relevant interest or knowledge of the specific task(s) to be deliberated. Each working group must have a convener who is responsible for coordination the work of the group, and this person may be identified by the BMC.

Working Groups may only make recommendations to a BMC - they may not make decisions or undertake any actions on behalf of the BMC without the endorsement of the BMC.

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PART FOUR: BMC CHAIRPERSONS AND EXECUTIVE OFFICERS

The following sections outline the roles, responsibilities and administrative procedures for BMC Chairs and Executive Officers.

BMC CHAIRPERSON

The SBCC has resolved that the BMC Chairperson will be the CFS Regional Commander at the time of a BMC meeting, and that the Deputy BMC Chairperson may be appointed by the BMC.

ROLES AND RESPONSIBILITIES OF THE CHAIRPERSON

The Chairperson is an appointed member of the BMC and the role is in addition to and separate from their responsibilities as a member.

The Chairperson presides at BMC meetings and signs all BMC correspondence as the BMC Chairperson.

The Chairperson must ensure the BMC carries out its responsibilities. While the BMC is collectively responsible for meeting its objectives and tasks, the Chairperson must guide and, where necessary, direct the committee to ensure that it remains focused on its tasks and maintains momentum in performing its bushfire management duties.

The key roles of the Chairperson include:

a) Provide leadership to the committee in its deliberations
b) Facilitate the Committees effort towards consensus outcomes
c) Establish and foster within the committee a cooperative working culture
d) Ensure balanced consideration in decision-making so that all views are heard
e) Ensure that the committee observes statutory and other directions (e.g. from the SBCC) applicable
f) Bring the necessary paperwork to meetings (agenda, minutes, business paper etc.)

The Chairperson is required to ensure that all BMC meetings commence in a timely manner and that all correspondence, including agendas, is circulated through the BMC's EO prior to the meetings. It is also the responsibility of the Chairperson to discuss with the EO the draft agenda set prior to each meeting.

ABSENCE OF THE CHAIRPERSON

If the Chairperson is absent at a meeting, a BMC member appointed as a deputy will assume the role of Chairperson.

BMC EXECUTIVE OFFICER

The Executive Officer [EO] of the BMC is a member of the SA CFS as specified by s 72(b) of the *FESA*. Ordinarily the BMC EO will be the Regional Prevention Officer [RPO], but other SACFS staff members may be appointed to the role as required.

ROLES AND RESPONSIBILITIES OF THE EXECUTIVE OFFICER

The role of the EO includes:

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a) Assisting the Chairperson to prepare for and conduct BMC meetings.
b) Preparing agendas and scheduling of Committee business.
c) Provision of advice and support to the Chairperson in terms of what the BMC can and cannot do, and advice on meeting procedure.
d) Utilising available resources for administrative assistance, including taking minutes, posting letters, and preparing meeting rooms.
e) Fulfilling the role of the CFS representative on the BMC.
f) Being aware of issues, actions, and reports for which the BMC is responsible.
g) Suggesting a timeframe for completion of any relevant actions.

The EO should meet with the Chairperson prior to each meeting to discuss:

a) The matters listed on the agenda.
b) Other matters which the EO is aware that is likely to arise during the meeting.
c) Who should be called on to inform/brief the BMC on matters during the meeting.

The EO should assist the progress of the Committee at each meeting by ensuring that the BMC understands:

a) The actions and goals they need to achieve.
b) Their roles and responsibilities.

A BMC may have an EO and an Assistant EO. These roles cannot be delegated or transferred to any other person. However, EO can enlist persons to assist them in their role. For example, an administrative assistant can be utilised to send out meeting minutes to members, or to take notes at the meeting from which minutes are prepared. The EO must check and endorse the minutes prior to circulation.

The EO also acts as a member of the BMC, with their role as EO being in addition to and separate from that of their responsibilities as a member. Assistant EOs may act as deputies for the EO. However, it will ordinarily be expected that the EO will perform this role. Assistant EO may attend Committee meetings as an *ex officio* member.

The EO is the key contact for Committee members for provision of information regarding Committee business. On receipt of correspondence for the BMC, the EO is to arrange for all material to be distributed promptly, rather than waiting until the next meeting (unless the next meeting is scheduled within one week of receipt of the material).

The EO does not have the right to speak on behalf of the BMC, it is the Chairperson's role to speak, when required.

All correspondence should be signed by the Chairperson and not the EO, unless authorised otherwise by the BMC. The EO can prepare a report or submission based on the information provided by the Committee, which is signed off by the Chairperson.

EXECUTIVE OFFICER ABSCENSE

In the absence of the EO at a BMC meeting, the Assistant EO may attend in their place, where an Assistant has been appointed. Where no Assistant EO has been appointed, it is the responsibility of the EO to send an administrative assistant along to the meeting to take the minutes if convenient. Alternatively, if no one is sent in the EO's absence, it is the responsibility of the Committee to ensure that the minutes are taken and passed onto the EO for completion/distribution.

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It is still appropriate to hold the meetings without the EO, however, the Chairperson must ensure that all paperwork is brought to the meeting that would normally be distributed by the EO. Although the EO may send an assistant to take minutes, the assistant does not assume the role of the EO and is present for minute taking only. The roles of the EO and Assistant EO cannot be delegated.

GENERAL RESPONSIBILITIES OF THE EXECUTIVE OFFICER

The general responsibilities of the EO include the items set out below. A checklist is provided at **Appendix 2** to assist Executive Officers in supporting the BMC. Where they have been appointed, Assistant EOs may perform any of these functions at the direction of the EO.

PREPARATION OF AGENDAS & MINUTES

The EO is required to draft agendas and minutes as per the templates contained in PART SEVEN: **Meeting Templates & Forms** of these Guidelines. The draft agenda is to be approved by the Chairperson prior to distribution, and should include all business that is carried over from the previous meeting.

The EO should draft minutes as soon as possible after each meeting and submit them to the Chairperson for approval/distribution. Once approved in draft form, the minutes are to be distributed to all BMC members for comment prior to adoption. Any comments or changes should be presented at the next meeting and the minutes adopted at that meeting. The adopted minutes should be distributed to all BMC members after the meeting and placed on file.

COMPILATION OF REPORTS AND BUSINESS PAPERS

At times briefing papers will be required for meetings. It is the EO's role to compile briefings into a business paper for distribution prior to the meeting. (Refer business paper template PART SEVEN: **Meeting Templates & Forms**)

Business papers may include reports provided by BMC members, either provided on their own initiative or requested by the EO. Business papers may not be required for all meetings, but should be compiled when it is determined additional background material is required.

Reports provided by BMC members may suggest a particular course of attention be undertaken, which should be produced as a recommendation to ensure it is raised at a BMC meeting.

DISTRIBUTION OF DOCUMENTATION

The EO is to ensure that copies of agendas, meeting notices, minutes (draft and final), business papers, correspondence, reports and the like are distributed to all BMC members in a timely fashion. Distribution may be electronic or hard copy according to the preference of Committee members and the nature of the material being distributed.

PREPARATION OF CORRESPONDENCE

It is the EO's responsibility to draft and prepare any correspondence at the direction of the BMC or the Chairperson. Any outgoing correspondence needs to be on standard BMC letterhead and is to be signed by the Chairperson (refer PART SEVEN: **Meeting Templates & Forms** for correspondence template).

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PREPARATION FOR MEETINGS

The EO is to ensure that, if a BMC meeting will take more than half a day, then arrangements for lunch will be made. SA CFS will cover the cost of refreshments and lunches.

The BMC is to determine as a whole the preferred location of meetings and it is then the responsibility of the EO to make the venue bookings. Alternative locations and venues should be discussed in the event that preferred locations and/or venues are not available.

It is also the EO's role to ensure the meeting room is adequately arranged and suitable facilities are available as required. The EO should ensure that persons invited to address the BMC meetings and/or provide a presentation have adequate time to set up prior to the meeting.

COLLATION OF APOLOGIES

It is the EO's role to record and collate apologies prior to and at the BMC meetings. If the number of apologies received prior to the meeting leaves the BMC unable to form a quorum, the EO must immediately advise the Chairperson and arrangements should be made to reschedule the meeting.

FILE MAINTENANCE

The BMC files belong to the Committee and as such should be kept separate from existing SACFS files, to assist with ease of access and reference. Therefore original BMC documents should not be filed on standard Regional business files. It is the responsibility of the EO to organise the filing system and have all files filed in an appropriate manner at their office. These files should be available for viewing by any member of the BMC during normal office hours.

BMC CALENDAR AND MEETING SCHEDULES

The EO needs to be aware of what the BMC is to accomplish and by when and should prepare a calendar for the BMC to ensure timelines are met. This calendar should be presented at each meeting by the EO to assess committee progress and remind the committee of tasks and due dates. The EO will need to monitor BMC business and correspondence to add new tasks and update amended tasks and dates to the calendar as they arise.

MEMBERSHIP RECORDS AND CONTACT DETAILS

A current membership list must be established and maintained by the EO. These details will normally be available to the SBCC, and to staff of the SA CFS involved in the management and administration of the SBCC and BMCs.

The EO should regularly check the contact list with BMC members at meetings and have members confirm their contact details/advise of changes where necessary. (Refer PART SEVEN: **Meeting Templates & Forms** for a personal details form).

NEW MEMBER INDUCTION

When a new member joins the BMC, it is the EO's role to provide them with the induction information together with a welcome letter. The EO will also need to meet with any new members prior to their first meeting to explain the role of the BMC, its plans, current projects and issues. The Executive Officer should introduce and welcome new members at their first meeting.

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BMC MEETING PROCESS

Most BMC business is conducted within meetings. This section of these Guidelines provides an overview of the meeting process.

CONDUCTING BUSINESS OUTSIDE OF MEETINGS

On rare occasions, a BMC may conduct business without a formal meeting. For example, to attain approval of amendments to documents, the EO may send an email with the attached document to all BMC members for consideration and a reply email provided by the members ensures approval or disapproval.

A BMC may conduct a meeting where one or a number of committee members are participating by teleconference. All committee members who are not participating in a meeting in person must be able to hear members who will be speaking at the meeting and must be heard by the other members.

Committee business papers may be circulated between committee members by email, post or any other agreed methods.

See also PART SIX: **Terms of Reference for Committees & Out of Session Protocol**

FREQUENCY OF MEETINGS

This section, 'Frequency of Meetings', has been wholly rescinded and deleted as a result of a SBCC resolution in November 2021. In support of this resolution, the reference to quarterly meetings for BMCs contained in the 'Guidelines for the State Bushfire Coordination Committee and Bushfire Management Committees' (January 2018) on p.21, and the section headed 'Frequency of meetings' on p.30 are hereby rescinded and deleted. It is further noted that the 2022 meeting schedule is subject to revision following the conduct of the SBCC and BMC review of governance.

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MEETING QUORUM

A quorum is the minimum number of people required to be present to make the proceedings of the meeting valid and formal. The quorum for a meeting of the BMC is half of currently filled seats on the committee (rounded down to the nearest whole number), plus one. It is acceptable for members to participate via teleconference, and their presence is to be counted into the quorum. Where the BMC is unable to form a quorum, the meeting may still proceed, but no business will be able to be formalised and and resolution must be formally considered by the committee when quorum is able to be achieved (either through out-of-session protocols or at a future meeting).

It is expected that any BMC member who cannot attend a meeting arranges to have a deputy present and advises the EO prior to the meeting. A courtesy call to the EO is required if a BMC member is running late for a meeting.

Where matters require urgent consideration and no quorum is present at a meeting, the members present may proceed to discuss these matters, with the record of the discussion circulated to members for comment and resolution (where required) out-of-session. The quorum rule is also applied to out-of-session business. If objections arise that cannot be resolved out-of-session, the matter should be deferred until the next BMC meeting and if required an urgent meeting can be called.

AGENDA AND CORRESPONDENCE

Agendas are prepared by the EO and approved by the Chairperson. Any member can request items be included as an agenda item. The standard BMC agenda template can be found at PART SEVEN: **Meeting Templates & Forms** of this these Guidelines.

Members should be provided with as much information as possible about issues to be discussed, prior to the meeting. This will enable the committee to understand the issues and to establish their organisation's/agency's position prior to the meeting, minimizing the need for issues to be deferred to subsequent meetings.

In addition to the agenda and copies of correspondence, the EO may compile a business paper containing items requiring decision. Business papers are compiled using information provided by BMC members, and approved by the Chairperson. (A template business paper form can be found in PART EIGHT: Meeting Templates & Forms).

BMC MEMBER REPORTS

When a member is required to provide a report to the BMC, they should do so in writing. It is preferable that reports requested are circulated with papers at least 7 days prior to the meeting, rather than being tabled. The report consists of a summary or dot points in which the member elaborates on during the meeting.

MEETING AGENDA AND CONSENSUS DECISIONS

Each item on the agenda is introduced by the Chairperson and addressed in turn. Members discuss the item and any proposals. The Chairperson must ensure that everyone who wants to express a view, idea or concern is heard. From time to time the Chairperson will remind the BMC what the proposal is, what has been agreed to so far, and what has still to be discussed or decided. Committee members should endeavour to reach a consensus decision.

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If one or more committee members strongly disagree with the proposal, the committee may be able to reach consensus by:

a) Changing the proposal or considering new options.
b) Exploring other ideas of the BMC members.
c) Leaving the issue for the time being to deal with later – some time and distance from the issue may allow a clearer view.
d) Reviewing or setting a closing date for a decision.
e) Making a decision that is conditional or adaptive.
f) Having a stepped or phased-in decision.

During a BMC meeting issues may arise that were not foreseen. If the EO is aware that a person present (including an observer) has knowledge of the matter under discussion, the EO should bring this to the attention of the Chairperson, so that the person can be asked to assist the Committee to allow it to deal with the matter as expeditiously as possible.

The EO should sit next to the Chairperson. This allows the Chairperson to seek the advice of, or give direction to the EO (or the EO to prompt the Chairperson) without disrupting the meeting.

OBSERVERS

An observer to a BMC meeting is a person who attends meetings but is not a member of the BMC.

An observer should:

a) Attend only the meetings to which the BMC invite them to attend. BMC members may request the observer be present while the matter relevant to them is being discussed.
b) Make presentations or comment only at the request of the BMC member and/or at the request of the Chairperson.
c) Must not intrude on BMC deliberations or decision making processes.
d) Observe all confidentialities and operating protocols of the BMC, as well as any other conditions as outlined by the BMC.

The record of attendance in the minutes should clearly distinguish between members and observers. (See PART SEVEN: **Meeting Templates & Forms** for an attendance record sheet). Regular observers endorsed by the BMC should be sent meeting notices, agendas and minutes.

BMC meetings are not open to the public or to organisations or agencies generally who have provided BMC members. However, it can be counter-productive to prevent the attendance of a person who persistently requests it.

MEETING MINUTES

The minutes of a BMC meeting are the official record of decisions made and progress on activities. They are a tool which assists the BMC in working towards its objectives and a record of the actions to be taken. Formal minutes must be taken at all BMC meetings. Decisions at BMC meetings should be confirmed and recorded in sufficient detail to stand alone. Anyone should be able to tell from the minutes what decisions were made at a meeting.

A template for minutes can be found in PART SEVEN: **Meeting Templates & Forms**.

The person taking notes for the minutes should sit next to the Chairperson so that they can ask for details to be clarified or ask the Chairperson to slow the meeting down if they need extra time to correctly record the details of a decision.

UNDER REVIEW

In addition to having written notes taken, it can be helpful to tape record the meeting. A recording device may only be used with the knowledge and consent of all members of the committee present.

Draft minutes should be prepared and distributed as soon as possible after the meeting.

SENSITIVE INFORMATION

All proceedings in the BMC are confidential until the committee has agreed otherwise, or where the provider of the information advises that it is publicly available and no restrictions apply to its release.

At times, BMCs will discuss issues which may be sensitive or controversial. In such cases, information provided and subsequent discussions must be treated with the utmost confidentiality and must be kept within the confines of the BMC. BMC members must respect the confidentiality of their deliberations and any privileged information with which they may be provided.

BUDGET, FINANCES AND RESOURCES

BMCs are not legal identities and cannot expend or receive monies. BMCs cannot apply for or receive grant funding. The SACFS will cover the cost of venue hire for meetings, hire of equipment, provision of refreshments or meals, printing of documents, photocopying and the like.

PUBLIC IMAGE

BMCs generally have a limited public profile. Member organisations/agencies usually have their own media/public relations unit. However, there may be times when it is appropriate for a BMC to issue media releases or comment on specific matters. These must be approved and signed by the Chairperson (not the EO). Such statements need to ensure that the message is clearly delivered from the BMC, not the SA CFS. Media releases or comments issued by a BMC must be consistent with SBCC policy. Assistance and advice can be sought from the EO of the SBCC.

CONFLICT RESOLUTION

There may be occasions when one BMC member's opinion will differ significantly from other members of the BMC. There may be times when discussions become heated and actions are not agreed upon.

Conflicts should be resolved where possible, at the time of the disagreement.

Should a BMC member find themselves in a situation which cannot be resolved, they should contact their organisation/agency for advice and support. If a fair resolution cannot be reached, then the dispute can be referred to the SBCC and will be addressed in accordance with the SBCC Conflict Resolution Policy (to be prepared).

FREEDOM OF INFORMATION (FOI)

The *Freedom of Information (FOI) Act 1991* allows information held by the South Australian government to be made available to the public when requested.

For the purpose of the *FOI Act 1991 (SA),* the SBCC and the BMCs are taken to be included in the CFS. This means that any application under the *FOI Act* for access to information relating to the BMC or its records must be made through the CFS. If a BMC receives a request for information

UNDER REVIEW

under the *FOI Act*, the Executive Officer must contact the CFS FOI Officer as soon as possible to determine what is required. It is very important to act quickly, as there is normally only a 21-day period for response.

PRIVACY AND PERSONAL INFORMATION

The South Australian Government requires the observance of the '*Information Privacy Principles (IPPS) Instruction)*[4], which refers to the collection, management and release of personal information. The IPPI requires that:

- Personal information should be not collected by unlawful or unfair means, nor should it be collected unnecessarily.
- An agency that collects personal information should take reasonable steps to ensure that, before it collects it or, if that is not practicable, as soon as practicable after it collects it, the subject of the record is told:
    a) the purpose for which the information is being collected (the "purpose of collection"), unless that purpose is obvious;
    b) if the collection of the information is authorised or required by or under law - that the collection of the information is so authorised or required; and
    c) in general terms, of its usual practices with respect to disclosure of personal information of the kind collected.
- An agency should not collect personal information that is inaccurate or, having regard to the purpose of collection, is irrelevant, out of date, incomplete or excessively personal.

There are specific requirements for the handling and access to any personal information that has been collected.

Under the IPPS, personal information is any information or opinion that relates to an identifiable person. It not only covers information in the traditional form, such as paper files, but also electronic records, genetic material, video recordings and photographs. The person does not have to be clearly identified by the information. That is, the person's name does not have to be mentioned - it is only necessary that the identity of the person can be reasonably proven from the information.

Although there will be limited occasions when a BMC will have cause to collect personal information, BMCs need to be aware of the existence of these privacy requirements. A full account of the IPPS is outside the scope of this these Guidelines. If a BMC finds itself in a position where it needs to collect personal information, or where a person has made an enquiry about information that the BMC may hold, the EO should contact the CFS headquarters for advice relevant to the BMC's particular circumstances.

UNDER REVIEW

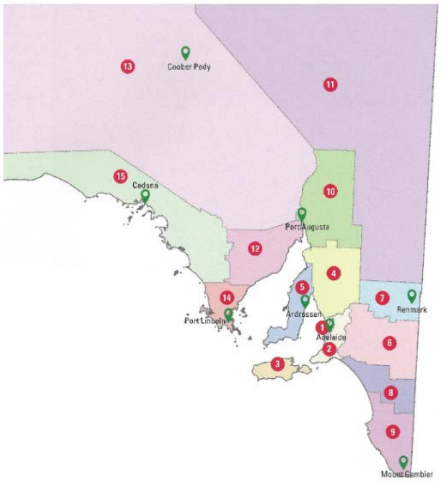
[4] Refer http://www.dpc.sa.gov.au/documents/rendition/DPC-Circular-Information-Privacy-Principles-IPPS-Instruction.pdf

PART FIVE: BMC BUSINESS MATTERS

During the course of a financial year, the BMC will need to preside over a number of regular business matters, adhoc or depending on the time of year, with regard to bushfire management. Following are some of the business matters that will need to be considered and deliberated during the course of the BMC sittings. Further detail regarding the below matters is contained in the **Bushfire Management Area Plan Handbook**

FIRE DANGER SEASON DATE RECOMMENDATIONS

South Australia has been divided into 15 Fire Ban Districts (FBDs) with each having their own Fire Danger Season (FDS) dates. BMC's may have two or more Fire Ban Districts within their boundary.



	Fire Ban District	Season starts	Season ends
1	Adelaide Metropolitan Area	1 December	30 April
2	Mount Lofty Ranges	1 December	30 April
3	Kangaroo Island	1 December	30 April
4	Mid North	15 November	30 April
5	Yorke Peninsula	15 November	30 April
6	Murraylands	15 November	15 April
7	Riverland	15 November	15 April
8	Upper South East	15 November	15 April
9	Lower South East	22 November	30 April
10	Flinders	1 November	15 April
11	North East Pastoral	1 November	31 March
12	Eastern Eyre Peninsula	1 November	15 April
13	North West Pastoral	1 November	31 March
14	Lower Eyre Peninsula	1 November	15 April
15	West Coast	1 November	15 April

Figure 2 South Australian Fire Ban Districts and Fire Danger Season Dates

The Fire Danger Season (FDS) is a period of time in which the risk of bushfire is elevated, normally from November to April. During this time all fire activity is regulated and the SACFS makes arrangements for increased bushfire risk response throughout the Regions.

As an advisor of bushfire management for BMAs, it is the BMC's responsibility to assess and make recommendations to the Chief Officer of the SACFS regarding the start and finish of the FDS each year. The climate and vegetation changes annually and needs to be considered prior to the traditional start of the FDS as the prevailing conditions may mean that FDS start dates need to be brought forward or in exceptional cases, delayed.

At the beginning of September and again in late February, the EO will collate and copy the following information to be distributed to BMC members for deliberation either out-of-session, if no meeting is scheduled, or at an appropriately scheduled meeting:

a) Average grassland fuel load for each Fire Ban District.
b) Current state and trend of grassland curing or re-greening across the FBDs.
c) Bushfire and Natural Hazard CRC 3-Monthly Outlook
d) Any relevant SACFS and Australasian Fire and Emergency Services Authorities Council (AFAC) publications regarding fire weather predictions.
e) Soil Dryness/Drought Indexes for relevant locations within the BMA – to-date and for previous years for comparison – as there are only 19 sites across the state this may not be relevant.
f) Any recent and relevant fire behaviour observations made by the SACFS or other agencies.

UNDER REVIEW

It is the responsibility of BMC members to take the information to their organisation/agency colleagues, either directly or indirectly involved in bushfire management, for discussion and generation of recommendations. Matters to consider when the documentation and data are received include:

a) Whether or not the grassland fuel loading is higher or lower than the average – higher means that there is more fuel available to burn and lower means there is less fuel available.
b) What the average grassland curing rate is and whether the grasses are curing faster or slower on average across the BMA – faster curing means that dry fuel is present earlier and slower curing means that it will take longer for dry fuel to increase the bushfire risk.
c) Whether or not the BoM climate outlook suggests a drier or wetter than usual spring – dry springs mean that grasslands will be curing faster and that there could be less available fuel with wet springs meaning more vegetation growth and slower curing. The FBDs could be experiencing drought in which there is little or no fuel available.
d) Comparing soil dryness indices (SDI) and drought factors (DF) to consider available soil moisture for vegetation growth – the higher numbers mean that it would take that much rainfall to moisten the soil (the soil profile to 200mm is deficient in moisture), lower numbers mean less rainfall is required to fill the soil profile with moisture.
e) Fire ignition and behaviour observations from the organisation/agency – there could be a forecast high thunderstorm activity period where dry lightning ignitions could present a problem, fire incidents have shown that fires are running fast or slow due to the conditions.
f) Any scheduled local activities that could contribute to fire ignition outside of the FDS and any known community safety matters that could influence the size and type of bushfire – an example being more farmers than average burning off outside of the FDS, or excessive numbers of people camping in the school holidays.

The EO will provide a template either by mail or email for the BMC members to record their observations and recommendations. The members are required to send the recommendations for the FDS to the EO at least 7 days before the scheduled meeting. The content of each recommendation will be discussed by the BMC members with the outcome being an agreed recommendation for the start and finish dates of the FDS for their FBDs.

The EO will generate a letter to the Chief Officer of the SACFS with the BMC start and finish date recommendations prior to the traditional start date in order that the dates can be gazetted and published on the SACFS website. It is common that the FDS start and finish dates remain the same as the traditional dates.

BUSHFIRE SAFER PLACE AND LAST RESORT REFUGES AMENDMENTS

Bushfire Safer Places (BSPs) and Last Resort Refuges (LRRs) need to be monitored and reviewed annually or when significant changes occur to townships and settlements. Councils are generally tasked with the maintenance of these areas to ensure they satisfy the conditions that make them a BSP or LRR. Townships and settlements change over time with some growing into surrounding areas, reducing the distance of hazardous vegetation from houses and others experiencing declining population for a variety of reasons.

The BMC member is responsible to review the BSPs and LRRs within their BMA. If an amendment is required they are to contact the EO to discuss the proposed change(s) and reasoning. The EO will investigate and take the measurements required for reassessment and table the findings at the next BMC meeting to progress the request in a timely manner. The BMC will discuss the amendment and achieve consensus on progressing the changes as a recommendation to the SBCC.

UNDER REVIEW

If the SBCC approves the amendment, the BMPU will update the map(s) and upload to the SACFS website.

REPORTING OF BUSHFIRE MANAGEMENT ACTIVITY

The BMC composition has a number of agencies/organisations that conduct bushfire management activities throughout the year. A requirement of BMC members is to provide a report on their action or inaction with regard to bushfire management at each BMC meeting. It is important that the BMC members produce a report that they can speak to at the meeting with reasoning provided as to why an activity was undertaken or not. Good practice involves the BMC member consulting with the relevant persons prior to the scheduled meeting. If this is not possible, the BMC member should invite the appropriate person to the meeting to provide the appropriate information.

The report needs to be typed on agency/organisation letterhead and provided to the EO either before or after the BMC meeting. This can be done by hand or digitally. The reports will aid the EO when they are required to generate an annual report on BMC bushfire management activities for the SBCC.

ANNUAL REPORTING OF BMAP ACTIVITIES

The BMAPs' Treatment Registers require ratification with regard to implementation, which is presented to the SBCC. The SBCC EO requires the BMC to report on BMAP activity or inactivity in July of each year. The BMC EO will produce the report according to BMC member input at the mid-year meeting.

BMC members responsible for treatments in the BMAP are required to present either their works plans that identify treatments that are implemented and, if treatment(s) were not implemented, reasons why the treatments could not be completed, or a written document stating what has been completed according to the BMAP treatment register. Any knowledge of treatments in the register that were or were not completed by relevant stakeholders also needs to be recorded.

The EO will collate reports and produce a document for the SBCC EO prior to the August meeting. The report will be tabled on the SBCC Agenda and presented to the SBCC. This report will then be passed on to the Minister of Emergency Services.

ANNUAL EXECUTIVE SUMMARY

The EO is responsible for providing this report on BMC membership and functionality in addition to the BMAP Report which is presented at the August SBCC meeting. This report is to state BMC member attendance or non-attendance at meetings, the organisations/agencies that have failed to nominate members to the committee. In addition, it needs to report on any issues with regard to BMC functionality over the course of the year. The Chair is to review and sign off on the report in preparation for sending to the SBCC EO for presentation at the SBCC meeting.

AUTHORISED OFFICER PERMIT ISSUING GUIDELINES

The SACFS Regional Prevention Officers (RPOs) conduct training for Authorised Officers throughout the year. Authorised Officers are able to, under the FESA, issue Schedule 9 and 10 permits for activities that utilise fire during the FDS. The Permit Issuing Guidelines endorsed by BMC's provide a consistent approach across the BMA for issuing permits and providing guidance to Authorised Officers on what conditions they may include on a permit that permit holders must adhere to when conducting their activities.

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The BMC is responsible for annually reviewing the guidelines. However, in circumstances where issues and/or incidents arise the guidelines may need to be reviewed at that time to prevent the issue or incident from eventuating again. Legislation or related policies and procedures may be changed during the course of a year, in which case the guidelines will need to be reviewed with regard to this.

BMAP AMENDMENT AGREEMENT AND APPROVAL

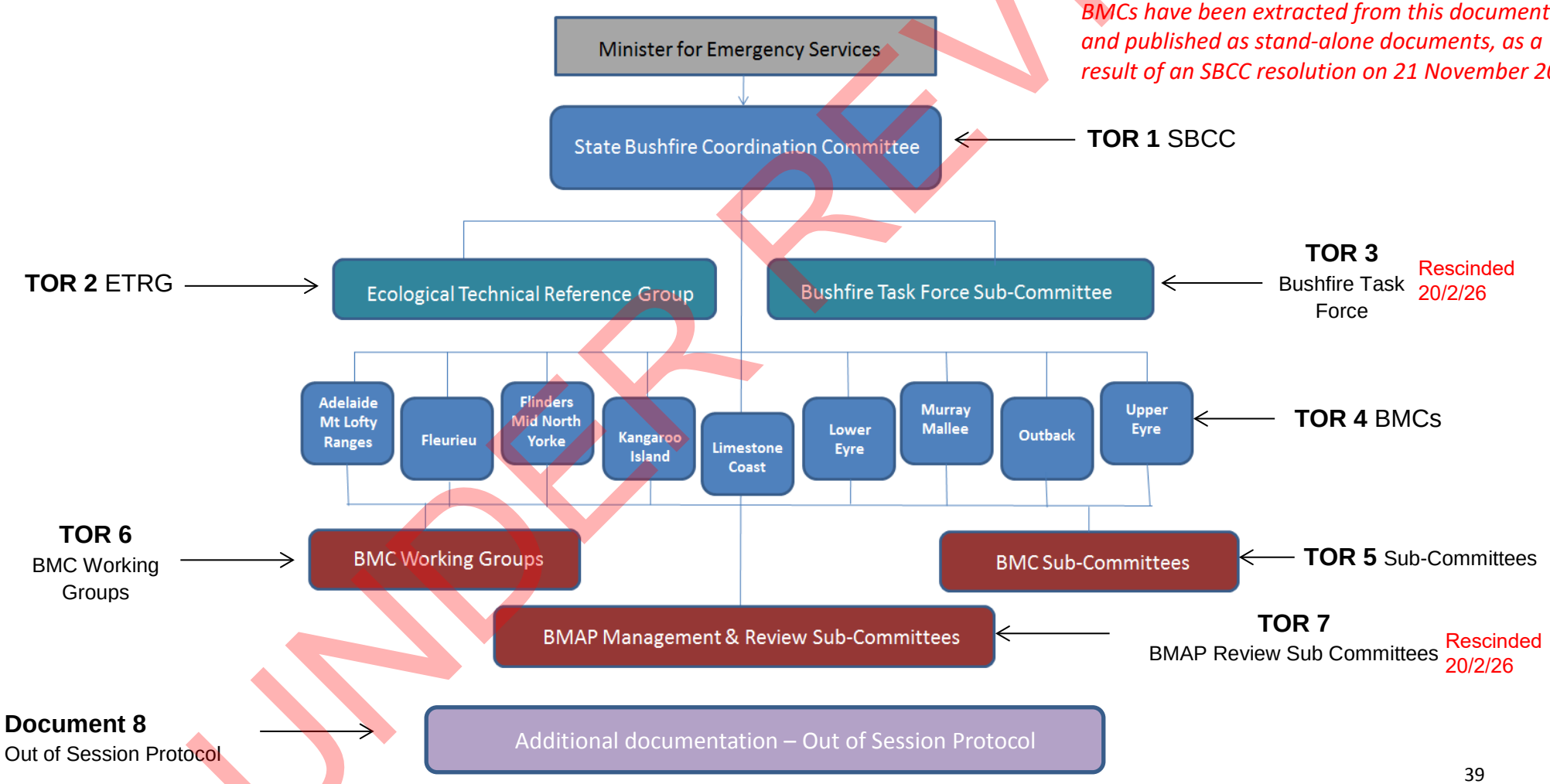
This section, 'BMAP Amendment Agreement and Approval', has been wholly rescinded and replaced by the November 2021 Amendment to SBCC and BMC Guidelines - Bushfire Management Area Plan (BMAP) Amendments. Hover over text for weblink.

UNDER REVIEW

PART SIX: TERMS OF REFERENCE FOR COMMITTEES & OUT OF SESSION PROTOCOL

The following section contains the terms of reference for the committees, sub-committees and working groups outlined and numbered as per the structure below. Additional to the seven Terms of References is the document outlining the **Out of Session Protocol** for committees.

***NOTE**: the Terms of Reference for the SBCC and BMCs have been extracted from this document and published as stand-alone documents, as a result of an SBCC resolution on 21 November 2025.*



UNDER REVIEW

Terms of Reference

BUSHFIRE MANAGEMENT COMMITTEE

SUB-COMMITTEE

UNDER REVIEW

VERSION	V2.0
DATE	NOVEMBER 2017
REVIEW	NOVEMBER 2020
STATUS	APPROVED
CONFIDENTIALITY	C3-RESTRICTED
DIVISION	PREPAREDNESS OPERATIONS

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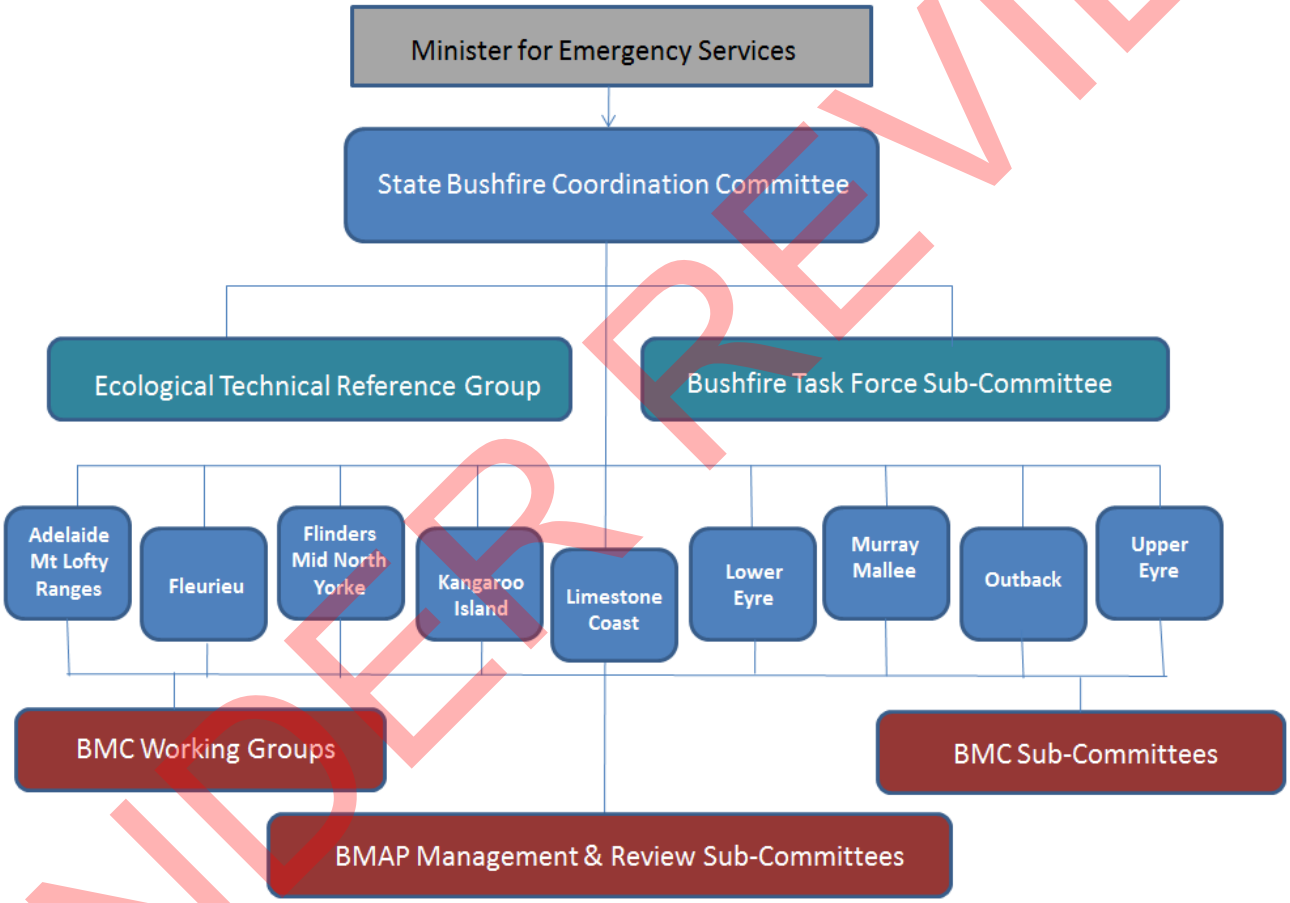
UNDER REVIEW

The Terms of Reference has been prepared in accordance with the guidelines issued by the Government of South Australia for "Improving the Effectiveness of Government Boards and Committees" (Department of the Premier and Cabinet Circular PC022, 19 September 2012).

1. Purpose

The purpose of a BMC Sub-Committee is to deal with any matter within a Bushfire Management Area (BMA) associated with the performance and/or function of a BMC, where ongoing, specific attention cannot otherwise be effectively managed by the BMC.

2. Structure



UNDER REVIEW

3. Authority

The formation of a BMC Sub-committee must be approved by the SBCC. The SBCC must be advised in writing of the formation of a BMC Sub-Committee, its purpose and members.

4. Membership

The composition and terms of appointment of a BMC Sub-Committee is determined by the BMC, and will include:

- BMC Executive Officer
- Representatives of stakeholders as determined by the BMC as appropriate to the ongoing specific task or function to be undertaken.

The BMC Executive Officer shall also be the Executive Officer for each BMC Sub-Committee.

At least one of the members of a BMC Sub-Committee must be a member of the BMC; other members of a Sub-Committee may be drawn from outside the BMC.

In the case of a BMC Sub-Committee existing between two BMCs, the Executive Officers of each Sub-Committee may determine whether the Sub-Committee is jointly managed or managed solely by one of the two Executive Officers.

5. Responsibilities

The responsibilities of the Sub-Committee are formulated by the BMC. A BMC Sub-Committee may only make recommendations to the BMC; it may not make decisions or undertake any actions on behalf of the BMC.

6. Meetings of Members

6.1 Procedures for Calling Meetings

The procedures for calling/conducting meetings of a BMC Sub-Committee are determined by the BMC.

6.2 Conflict of Interest

If a member believes that a conflict of interest exists or would be perceived to exist in respect of any matter placed before the Sub-Committee, that member should declare the interest and not take any part in the discussions or decisions in respect of that matter.

6.3 Confidentiality of Deliberations and Decisions

Where agreed by the Sub-Committee, members will keep confidential the deliberations of the Sub-Committee including the positions adopted by individual members of the Sub-Committee.

UNDER REVIEW

6.4 Executive Officer

The Executive Officer is responsible for coordinating the business of the Sub-Committee.

6.5 Agenda and Papers

A notice of meeting time and date should be provided to the Sub-Committee well before the meeting date, together with minutes from the last meeting and any other relevant papers.

6.6 Minutes

Minutes are to be recorded for each meeting, detailing outcomes and action items. Minutes are in draft form until approved at the next meeting subject to such modifications as are dee med necessary. A copy of draft minutes, together with action items are distributed to the BMC and the Sub-Committee within 10 days of each Sub-Committee meeting.

5.7 Retention of Records

Minutes and records shall be retained in accordance with the provision of the State Records Act 1997.

6. Review

These terms of reference are to be reviewed and endorsed bi-annually by the SBCC.

References

State Records Act 1997
State Emergency Management Plan Annex K
State Bushfire Coordination Committee and Bushfire Management Committees Guideline
CFS Style Guide

RECORD OF AMENDMENTS

DATE	VERSION	AUTHOR	DESCRIPTION

UNDER REVIEW

BUSHFIRE MANAGEMENT COMMITTEE

WORKING GROUP

UNDER REVIEW

VERSION	V2.0
DATE	NOVEMBER 2017
REVIEW	OCTOBER 2019
STATUS	APPROVED
CONFIDENTIALITY	C3-RESTRICTED
DIVISION	PREPAREDNESS OPERATIONS

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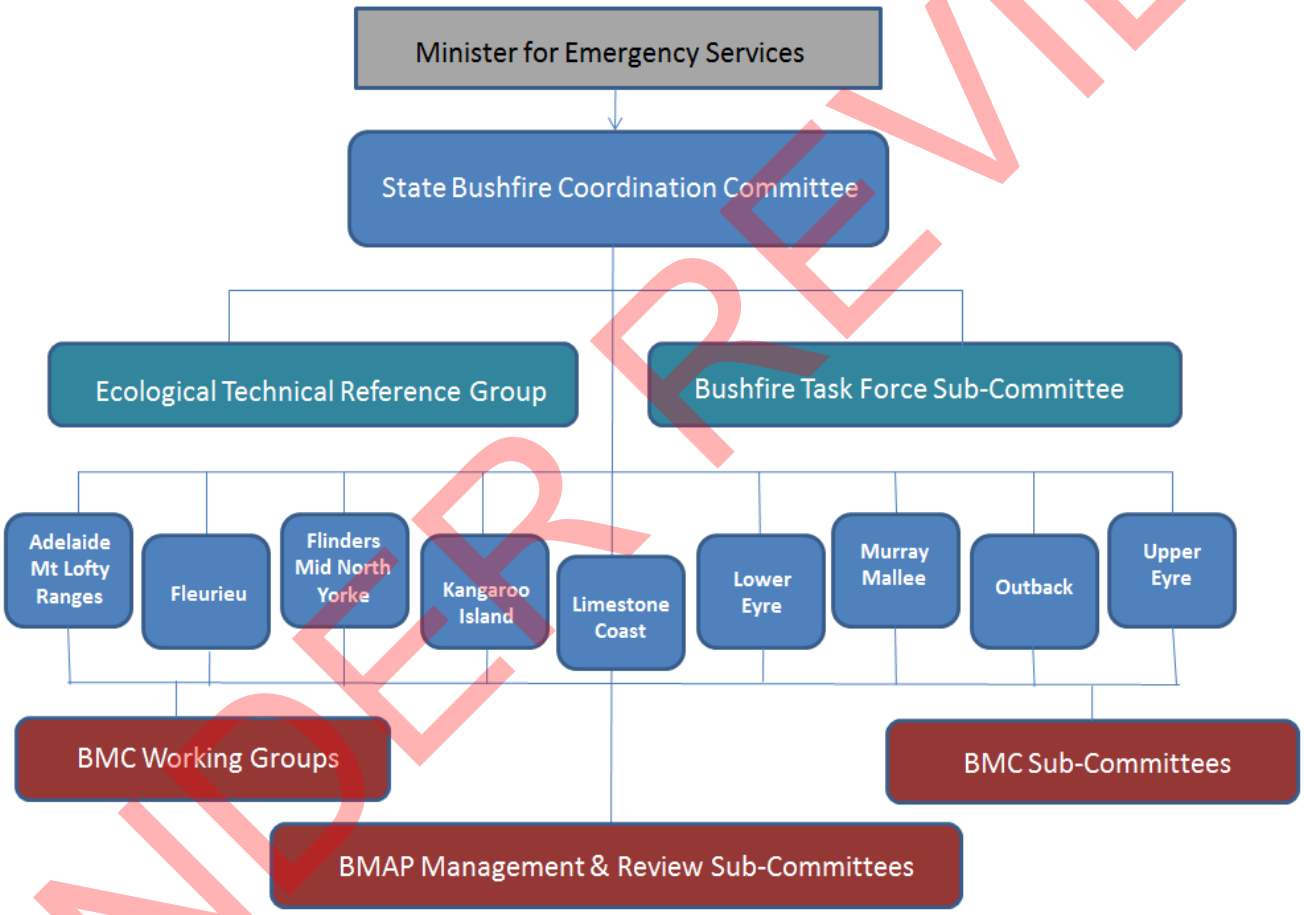
UNDER REVIEW

The Terms of Reference has been prepared in accordance with the guidelines issued by the Government of South Australia for "Improving the Effectiveness of Government Boards and Committees" (Department of the Premier and Cabinet Circular PC022, 19 September 2012).

1. Purpose

The purpose of a BMC Working Group (BMC WG) is to support the BMC in developing policy and procedures pertaining to mitigation strategies within the Bushfire Management Area (BMA). BMC Working Groups should be formed to undertake specific tasks over an identified period of time and should not be maintained as an ongoing structure.

2. Structure



UNDER REVIEW

3. Membership

The composition and terms of appointment of BMC WG is determined by the BMC, and will include:

- BMC Executive Officer
- Representatives of stakeholders as determined by the BMC as appropriate to the task to be undertaken

Working Groups may include CFS Volunteer representatives from the CFS Group(s) as appropriate/where there is capacity to the task to be undertaken.

At least one of the members of a BMC WG must be a member of the BMC; other members of a WG may be drawn from outside the BMC.

Each BMC WG must have a convenor who is responsible for the coordination of the WG and this person will be identified by the BMC.

The SBCC must be advised in writing of the formation of a BMC WG, its purpose, members and duration.

4. Responsibilities

The responsibilities of the WG are formulated by the BMC. A BMC WG may only make recommendations to the BMC; they may not make decisions or undertake any actions on behalf of the BMC.

5. Meetings of Members

5.1 Procedures for Calling Meetings

The procedures for calling/conducting meetings of a BMC WG are determined by the BMC.

5.2 Conflict of Interest

If a member believes that a conflict of interest exists or would be perceived to exist in respect of any matter placed before the WG, that member should declare the interest and not take any part in the discussions or decisions in respect of that matter.

5.3 Confidentiality of Deliberations and Decisions

Where agreed by the WG, members will keep confidential the deliberations of the WG including the positions adopted by individual members of the WG.

5.4 Convenor

The convenor is responsible for coordinating the WG.

UNDER REVIEW

5.5 Agenda and Papers

A notice of meeting time and date should be provided to the WG well before the meeting date, together with minutes from the last meeting and any other relevant papers.

5.6 Minutes

Minutes are to be recorded for each meeting, detailing outcomes and action items. Minutes are in draft form until approved at the next meeting subject to such modifications as are deemed necessary. A copy of draft minutes, together with action items are distributed to the BMC and the WG within 10 days of each WG meeting.

5.7 Retention of Records

Minutes and records shall be retained in accordance with the provision of the State Records Act 1997.

6. Review

These terms of reference are to be reviewed and endorsed bi-annually by the SBCC.

References

State Records Act 1997
State Emergency Management Plan Annex K
State Bushfire Coordination Committee and Bushfire Management Committees Guideline
CFS Style Guide

UNDER REVIEW

RECORD OF AMENDMENTS

DATE	VERSION	AUTHOR	DESCRIPTION

BUSHFIRE MANAGEMENT COMMITTEE

BMAP MANAGEMENT

AND

REVIEW SUB-COMMITTEE

UNDER REVIEW

VERSION	V2.0
DATE	NOVEMBER 2017
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STATUS	APPROVED
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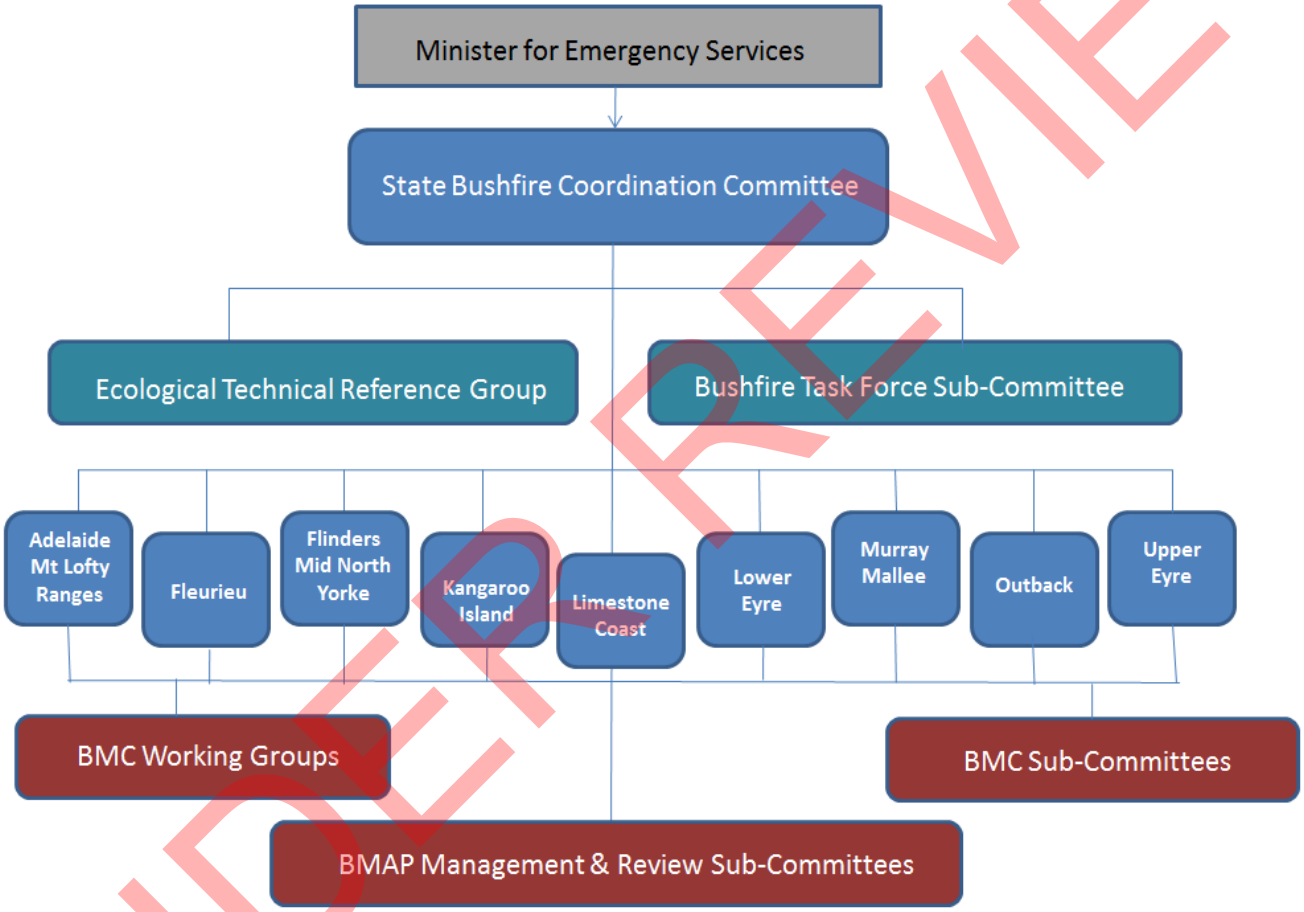
UNDER REVIEW

The Terms of Reference has been prepared in accordance with the guidelines issued by the Government of South Australia for "Improving the Effectiveness of Government Boards and Committees" (Department of the Premier and Cabinet Circular PC022, 19 September 2012).

1. Purpose

The purpose of a Bushfire Management Area Plan (BMAP) Management and Review Sub-Committee is to support the BMC in the oversight and ongoing monitoring of the BMAP.

2. Structure



UNDER REVIEW

3. Membership

The composition and terms of appointment of BMAP Management and Review Sub-Committee is determined by the BMC, and will include:

- Chair (to be appointed by the BMC from current BMC membership only)
- BMC Executive Officer
- Up to three (3) nominees (to be appointed by the BMC from current BMC membership only).

The Executive Officer shall also be the Executive Officer for the BMAP Management and Review Sub-Committee.
The SBCC must be advised in writing of the formation of a BMAP Management and Review Sub-Committee and its members.

4. Responsibilities

The responsibilities of the Bus-Committee are to annually review:

a) The BMAP to monitor progress towards the completion of treatment works listed in the BMAP and the timeliness of the works. Annual Reports must be provided to the BMC.
b) The BMAP to ensure that new and emerging risks and appropriate treatment adjustments to address those risks (as required) are recommended to the BMC for endorsement as variations to the BMAP;
c) The status of Bushfire Safer Places within the BMA.

The BMAP Management and Review Sub-Committee may only make recommendations to the BMC; it may not make decisions or undertake any actions on behalf of the BMC.

5. Meetings of Members

5.1 Procedures for Calling Meetings

The procedures for calling/conducting meetings of a BMAP Management and Review Sub-Committee are determined by the BMC.

5.2 Conflict of Interest

If a member believes that a conflict of interest exists or would be perceived to exist in respect of any matter placed before the BMAP Sub-Committee, that member should declare the interest and not take any part in the discussions or decisions in respect of that matter.

5.3 Confidentiality of Deliberations and Decisions

Where agreed by the BMAP Sub-Committee, members will keep confidential the deliberations of the BMAP Sub-Committee including the positions adopted by individual members of the BMAP Sub-Committee.

UNDER REVIEW

5.4 Convenor

The convenor is responsible for coordinating the BMAP Sub-Committee.

5.5 Agenda and Papers

A notice of meeting time and date should be provided to the BMAP Sub-Committee well before the meeting date, together with minutes from the last meeting and any other relevant papers.

5.6 Minutes

Minutes are to be recorded for each meeting, detailing outcomes and action items. Minutes are in draft form until approved at the next meeting subject to such modifications as are dee med necessary. A copy of draft minutes, together with action items are distributed to the BMC and the BMAP Sub-Committee within 10 days of each Sub-Committee meeting.

5.7 Retention of Records

Minutes and records shall be retained in accordance with the provision of the State Records Act 1997.

6. Review

These terms of reference are to be reviewed and endorsed bi-annually by the SBCC.

References

State Records Act 1997
State Emergency Management Plan Annex K
State Bushfire Coordination Committee and Bushfire Management Committees Guideline
CFS Style Guide

UNDER REVIEW

RECORD OF AMENDMENTS

DATE	VERSION	AUTHOR	DESCRIPTION

STATE BUSHFIRE COORDINATION COMMITTEE

OUT OF SESSION PROTOCOL

FOR

SBCC, BMCs, ASSOCIATED SUB-COMMITTEES

AND WORKING GROUPS

UNDER REVIEW

VERSION	V2.0
DATE	NOVEMBER 2017
REVIEW	OCTOBER 2019
STATUS	DRAFT
CONFIDENTIALITY	C3-RESTRICTED
DIVISION	PREPAREDNESS OPERATIONS

1. Purpose

The purpose of this document is to detail the agreed protocol to enable discussions and decisions outside of the scheduled meetings of the State Bushfire Coordination Committee (SBCC), the Bushfire Management Committees (BMCs) or associated sub-committees and working groups, in order to deal with emerging issues in a timely manner.

This document should be read in conjunction with SBCC's/BMCs' Terms of Reference, or those of the relevant sub-committee or working group.

2. Out-of-Session Decisions

2.1 Via Email

Out-of-session decisions are able to be sought from members via email where the issue is not complex and able to be easily communicated via email.

The explicit approval of the Chair is required prior to requesting a decision from members via email.

Where approval is provided, the Executive Officer will issue the email correspondence on behalf of the Chair making it explicit that a formal decision of the members is being requested.

2.1.1 Consensus

A decision supported by a majority of members via email is the decision of the Committee.

A decision taken via email must be ratified by the Chair of the Committee.

2.1.2 Notification of Decisions

Decisions made via email will be circulated to each member once ratified by the Chair. Where possible, this will be within 3 working days of the original request for decision. All decisions made via email will be placed on the Agenda of the next scheduled meeting.

2.2 Extraordinary Meeting

The Chair can approve the calling of an extraordinary meeting where an issue has emerged which cannot wait for the next scheduled meeting to be considered and is too complex to be handled via email.

2.2.1 Chair

If the Chair is not available to attend an extraordinary meeting, the Chair must nominate another member and notify all members of the alternative Chair prior to that meeting.

UNDER REVIEW

2.2.2 Quorum

While it is preferred that all members attend an extraordinary meeting, it is recognised that this will not always be possible given that meetings are likely to be called at short notice.

A quorum for an extraordinary meeting shall consist of at least half normal members, including at least one non-emergency services representative.

2.2.3 Consensus

A decision supported by a majority of the votes cast at an extraordinary meeting at which a quorum is present is the final decision.

A decision taken at an extraordinary meeting must be ratified by the Chair.

2.2.4 Secretary and Resourcing

The Executive Officer will provide secretariat support for extraordinary meetings.

2.2.5 Minutes

Minutes will be kept of each extraordinary meeting. They will be circulated to each member once the Chair has ratified the decision(s) taken. Where possible, this will be within 3 working days of the meeting.

The Minutes of extraordinary meetings will also be placed on the Agenda of the next scheduled meeting.

2.3. Retention of Records

Decisions made via email or extraordinary meeting shall be retained in accordance with the provision of the *State Records Act 1997*.

UNDER REVIEW

RECORD OF AMENDMENTS

DATE	VERSION	AUTHOR	DESCRIPTION
08.02.13	DRAFT 1	A WILSON	INTERNAL DRAFT
30.11.17	DRAFT 2	CFS BMPU	MINOR FORMATTING CHANGES

PART SEVEN: MEETING TEMPLATES & FORMS

The following sections contains the below templates that should be used by all BMCs

1. MEETING AGENDA TEMPLATE Rescinded 20/2/26
2. MEETING MINUTES TEMPLATE Rescinded 20/2/26
3. ACTION & AGREEMENT RECORD TEMPLATE
4. ATTENDANCE TEMPLATE
5. PERSONAL DETAILS FORM
6. CORRESPONDENCE TEMPLATE Rescinded 20/2/26
7. BUSINESS PAPER TEMPLATE Rescinded 20/2/26
8. SUB COMMITTEE SITTING FEE FORM Non-SBCC doc - ceased use 20/2/26
9. DECLARATION OF PECUNIARY INTEREST FROM
10. ESTABLISHMENT OF A SUB-COMMITTEE OR WORKING GROUP TEMPLATE
11. REIMBURSEMENT FORM Non-SBCC doc - ceased use 20/2/26
12. DISBURSEMENT FORM

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Action and Agreement Record				
Date		Time:	Duration:	Location:
Meeting	***Name of Committee***			
Attendees				
Apologies				

No	Actions and Agreements	Who	When	Completed
1.	**Welcome/Apologies**	Chair		
2.	**Safety Briefing / OHSW Issues**	Executive Officer		
3.	**Declarations of conflict of Interest / Probity**	Executive Officer		
4.	**Confirm Minutes of Previous Meeting** **Moved:** **Seconded:** **CARRIED**	Chair		
5.	**Business arising from minutes**			
6.	**Correspondence** **IN** **OUT**	Chair		

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UNDER REVIEW

	Correspondence accepted **Moved:** **Seconded:** **CARRIED**			
7.	**Business Items**			
8.	**Other Business**			
9.	**Late Agenda Items:**			
10.	**Next Meeting:**			
11.	**Future Meeting Schedule:**			

DRAFT
UNDER REVIEW

Government of South Australia

<insert name of committee> BUSHFIRE MANAGEMENT COMMITTEE

BMC Attendance Record

Meeting Date: ___/____/ 20___ **Meeting Location:** _____

Chairperson: _____

Executive Officer: _____

Please note - only one person representing each organisation may vote at meetings. If the MEMBER is attending then the DEPUTY has nil voting rights. ANY person attending the meeting who has NIL voting rights please register on the OBSERVERS attendance register.

Name	Organisation	Member / Deputy / Observer (*please indicate*)

UNDER REVIEW

Government of South Australia

<insert name of committee> BUSHFIRE MANAGEMENT COMMITTEE

COMMITTEE MEMBER - PERSONAL DETAILS

Name	
Organisation	
Postal Address	
Email Address	
Phone	
Mobile	
Facsimile	
Preferred method of contact	

OFFICE USE ONLY	
Date	
Membership Commenced	

Please note: This information will not be supplied to third parties unless written consent is provided by the Committee member.

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(FORMAT FOR)

SBCC PROPOSAL/BUSINESS PAPER

TITLE

INTRODUCTION TO ISSUE

Proposals/Business Papers put to the SBCC need to be researched, analysed and well presented. It is preferred that Proposals/Business Papers are in the following format:

BACKGROUND

The reason the proposal is being put forward. What prompted the proposal?

DISCUSSION – including

- *Relationship to Policy*

OPTIONS AND RECOMMENDATION

Comment on all identified options and justify argument as to why the preferred option has been chosen.

WORDING OF RECOMMENDATION

Include a clear, unambiguous and concise recommendation.

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Appendix 3 - Declaration of Pecuniary Interests Form

(extracted from "Government Boards and Committees", Government of South Australia, 2000)

Confidential

DECLARATION OF PECUNIARY INTERESTS

SURNAME: ……

OTHER NAMES ……

DATE OF BIRTH: ……/……./ 20…….

ADDRESS: ……

Registrable Interests	Details
1. The income Source[1] of any financial benefit[2] which you received or were entitled to receive during any part of the previous twelve months.	
2. The name of any company or other body in which you held office as director or otherwise during the previous twelve months.	
3. The name or description of any company or other body in which you hold a beneficial interest.	
4. The name of any association or trade or professional organisations of which you are or have been a member during the past twelve months.	
5. A concise description of any trust in which you hold a beneficial interest or a potential beneficial interest.	
6. A concise description of any trust or other body in which a member of your family[3] holds a beneficial interest or a potential beneficial interest.	
7. The address or description of any property[4] in which you hold a beneficial interest (other than by way of security for a debt).	
8. The source of any significant contribution in cash or in kind for travel beyond South Australia undertaken by you during the previous twelve months (but not including contributions from public funds).	
9. Any gift exceeding $500 received by you from a person other than a relative by blood or marriage.	
10. Any other substantial interest (whether of a pecuniary nature or not) held by you or a member of your family of which you are aware and which you consider might appear to raise a material potential conflict with your public duty.	
11. Any criminal conviction, financial or taxation dealing and any other matter that might render or be seen to render you unfit for this office.	

I will undertake to declare any change in circumstances that might be seen to cause a potential conflict of interests.

Signature: ……..

Signature of Witness: …… Date: ……../……../20……

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[1] "Income source" means: a) any person or body of persons with whom you entered into a contract of service or held any paid office; or b) any trade, vocation or profession engaged in by you.

[2] "Financial benefit" means: a) the remuneration fee, salary or other pecuniary sum received by you in respect of any contract of service entered into or paid office held by you; and b) the total of all remuneration fees or other pecuniary sums received by you in respect of any trade, profession or vocation engaged in by you

[3] "Family" to include de facto spouse, dependent children and other members of the household or family with closely connected interests.

[4] "Property" to include private residence, land and other real estate.

Government of South Australia

<insert name of committee>
BUSHFIRE MANAGEMENT COMMITTEE

Establishment of a Sub-Committee or Working Group Documentation

[insert name] Working Group/Sub-committee
Reports to: [name] BMC

Decision No._____ Date:_____

[Quote resolution that establishes the sub-committee/working group]
_____
_____
_____
_____

Convenor:_____

Members:

Name	Organisation/Agency	Phone	Email

Terms of Reference:
(e.g. review organisation/agency performance against nominated BMAP activities)
_____
_____
_____
_____

Project/s assigned to WG:
(e.g. prepare report detailing progress made towards treatment plans nominated in BMAP)
_____
_____
_____
_____
(include Decision Nos. etc as relevant – also include any additions, changes or directions from Committee as the project progresses)

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Government of South Australia

<insert name of committee>
BUSHFIRE MANAGEMENT COMMITTEE

WG Project *(prepare one of these pages per project assigned)*

Project title:_____

Expected completion date:___/_____/ 20____

Scope of project:

_____
_____
_____
_____
_____

(include things that will/will not be addressed, if this is necessary)

Tasks:

_____
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_____

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PAYROLL DISBURSEMENTS

UNDER REVIEW

SURNAME…… **FIRST NAME** …… **EMPLOYEE NO**: ……

AGENCY ❑ CFS ❑ SES ❑ SAFECOM

Maximum of four disbursements for Balance of Pay for each employee.

Bank Name	BSB Number	Branch Name	Account Number	Account Name (if joint show initials)	Fixed Amount or percentage
1.					
2.					
3.					
4.					
Example Bank SA	105-132	Pulteney Street	5654845	J. & C. Citizen	100%

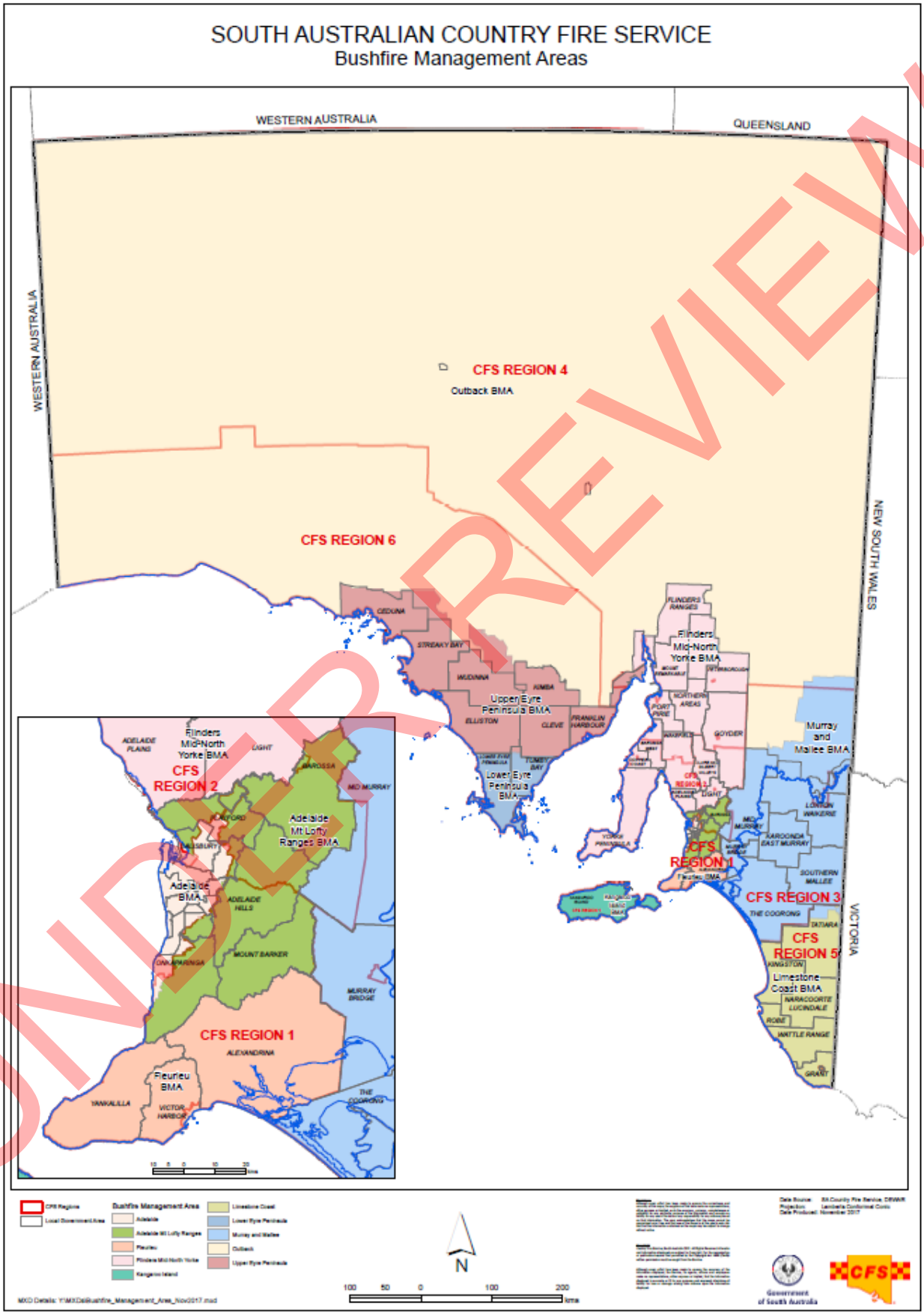
Signature of employee: _____ **Date:** _____

Witness: _____ **Name**: _____

Note: Fixed amounts and percentages of salary may be used however percentages must total 100%.
Should there not be enough money to send for all disbursements allocation will be in the order 1, 2 and 3.

Payroll – Team 10, Shared Services SA
PHONE: 8462 1333 (press 1)
EMAIL: Payroll10Documentation@sharedservices.sa.gov.au

APPENDIX 1 – BUSHFIRE MANAGEMENT AREA BOUNDARIES



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APPENDIX 2 – CHECKLISTS FOR BMC MEETINGS

WHAT SHOULD BE COMPLETED BEFORE A BMC MEETING?

What?	When?	Who?
Draft yearly meeting schedule	End of each calendar year, send meeting requests	Executive Officer after discussion and consensus from BMC
Meeting schedule distributed	End of each calendar year send meeting requests	Executive Officer
Draft agenda	At least 21 days before scheduled meeting	Executive Officer
Submit draft agenda to Chairperson to review	21 days before scheduled meeting	Executive Officer
Approve agenda	14 days before scheduled meeting	Chairperson
Check apologies & if no quorum reschedule meeting	7 days before scheduled meeting	Executive Officer in coordination with Chairperson
Agenda & any business paper &/or reports distributed	At least 7 days before meeting	Executive Officer
Minutes drafted and submitted to the Chairperson for review	As soon as possible after meeting (keep in mind that draft minutes need to be sent to BMC within 15working days)	Executive Officer & Chairperson
Draft minutes circulated to BMC once approved by Chairperson	As soon as possible after meeting but within 15 working days of each BMC meeting	Executive Officer
Compile list of changes to draft minutes from last meeting	Upon receipt & before next meeting	Executive Officer
Prepare correspondence register since last meeting	At least 1 day before meeting	Executive Officer

WHAT SHOULD BE SENT TO BMC MEMBERS PRIOR TO A MEETING?

What?	When?	Who?
Meeting reminder notice & call for agenda items	At least 14 days prior to meeting	Executive Officer
Agenda	At least 7 days prior	Executive Officer
Draft Minutes of previous meeting	As soon as possible after meetings (within 15 days), should be sent out again as a reminder at least 7 days before next meeting	Executive Officer
Business paper(s) and/or reports (if any)	At least 7 days prior	Executive Officer

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WHAT SHOULD BMC MEMBERS DO PRIOR TO A MEETING?

What?	When?	Who?
Read agenda, draft minutes, business paper(s), correspondence etc.	Prior to meeting	All members
Seek clarification or advice if necessary from Executive Officer or organisation/agency	At least 1 day prior	All members
Written review of organisation/agency's progress with the BMAP & any related targets & actions	At least 1 day before meeting – written report to Executive Officer at least 14 days prior to meeting	All members
Contact Executive Officer to list items on the agenda if desired	At least 14 days prior to meeting	All members
Provide written reports, position papers if necessary to Executive Office	At least 14 days prior to meeting	All members

WHAT IS EXPECTED DURING A MEETING?

What?	When?	Who?
Notes taken from which minutes can be prepared	During meeting	Executive Officer or Administrative Assistant on his/her behalf
Apologies recorded	At start of meeting	Executive Officer/all members
Circulate list of BMC contacts and update where necessary	During meeting	Executive Officer/all members
Adopt previous minutes	After apologies are taken	All members
Discuss any correspondence that has been received or circulated prior to the meeting	After adoption of minutes	All members
Report on bushfire activities since last meeting	During meeting	All members
Go through task list and update if necessary	During meeting	Executive Officer

WHAT SHOULD BE COMPLETED AFTER A MEETING?

What?	When?	Who?
Draft minutes and submit draft minutes to the Chairperson for approval	As soon as possible after meeting but no longer than 10 working days after meeting	Executive Officer
Circulate draft minutes to all members once approved	As soon as possible after meeting but no longer than 15 working days after meeting	Executive Officer
Check draft minutes for accuracy and advise EO is any changes required	Upon receipt of draft minutes & before due date set by EO	All members
Update BMC members list if there are any changes	As need basis on resignation or retirement of BMC member	Executive Officer
Update task/project register	Not more than 2 weeks after	Executive Officer

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	meeting	
Carry out tasks and projects agreed at meeting	Within timeframes set at meeting	All members

WHAT SHOULD BE COMPLETED ONCE A YEAR?

What?	When?	Who?
Contact organisations/agencies eligible for BMC membership but who are not currently represented & issue an invitation to provide a member to the BMC. Contact should be made in writing.	On an as needs basis upon a BMC member retiring, leaving or when a major change occurs within a BMA (new industry or land use etc.).	Executive Officer/Chairperson
Prepare and submit annual report to SBCC	One per year as directed by the SBCC	BMC
Report on implementation of BMAP	Once per year as directed by the SBCC	BMC
Prior to commencement of the fire season, discuss whether there is likely to be a need to recommend a variation to the bushfire danger period in any of the Fire Ban Districts within the BMA to the CFS Chief Officer	Twice yearly - prior to the commencement of the FDS and the prior to the end of the FDS. BMC to consider environmental conditions.	BMC
Review fire track register	Once per year	BMC

WHAT SHOULD BE COMPLETED ONCE EVERY 4 YEARS?

What?	When?	Who?
Prepare and submit a Bushfire Management Area Plan	Every 4 years or as directed by the SBCC	BMC

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APPENDIX 3 – SUMMARY FACT SHEET FOR BMC MEMBERS

WHAT MAY A BMC DO?

- **Make recommendations regarding bushfire danger periods**

- **Endorse guidelines for permits to burn within their BMA,** consistent with the Act and any SBCC policy regarding permits to burn

- **DRAW MATTERS TO THE ATTENTION OF THE BMC & SBCC**

  BMC members may bring matters to the attention of the Committee that they think will benefit the Committees discussion and input. For example, DEWNR has decided not to burn a particular nature reserve for a number of years in order to protect a particular plant species. This approach may be useful for the BMC to endorse if the action is consistent with the BMAP. This allows for DEWNR to have general support from the BMC, which is the body most knowledgeable of bushfire management in the area.

  On occasion, issues will arise that cannot be resolved locally by the BMC, or where it appears that the problem may be wider spread, or where the BMC has devised a solution or developed an idea that might be of wider benefit or application. These matters may be referred to the SBCC for the information or advice of that committee, through the Executive Officer.

- **PROVIDE SUGGESTIONS AND FEEDBACK TO THE SBCC**

  The SBCC actively encourages BMC feedback on its policies, these Guidelines etc. Suggestions and comments should be made in writing to the SBCC Executive Officer.

WHAT DOESN'T A BMC DO?

The BMC is not a legal entity and as such there are a range of matters it cannot undertake. These include:

- **A BMC CANNOT UNDERTAKE HAZARD REDUCTION WORKS**

  The proponent for hazard reduction or other physical works should be the owner or lawful manager of the land, or organisation/agency intending to carry out the work. For example, DEWNR is responsible for carrying out works on protected areas.

- **A BMC CANNOT ASSESS OR GIVE APPROVAL FOR HAZARD REDUCTION WORKS**

  A BMC is not an approval authority and as such cannot assess or give approval for hazard reduction works. Any hazard reduction works approvals or any other necessary environmental assessments must be sought from the relevant approval authorities. However, there are certain hazard reduction works that can be undertaken without specific approval, and these are set out in the *Native Vegetation Regulations 2017*.

- **A BMC CANNOT PROHIBIT BUSHFIRE MANAGEMENT WORKS**
  A BMC has no authority to prevent a land owner/manager or other person carrying out bushfire management works on land. While a BMC may advise that: works are inappropriate for a bushfire hazard reasons; are not required for bushfire management purposes; and/or require legal approval by other authorities, the BMCs have no authority to prevent such works.

- **A BMC CANNOT DIRECT BUSHFIRE MANAGEMENT WORKS**

  A BMC cannot direct or force any land owner/manager or any other person to

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undertake or cease bushfire management works. A BMC can however, use its authority to advise and attempt to persuade the person to concur to the views of Committee.

- **A BMC CANNOT ENTER INTO ANY CONTRACT**
  A BMC cannot enter into any contract, for example, engaging an earthmoving contractor for the construction or maintenance of fire tracks, or a funding agreement for a grant. Such agreements need to be entered into by the relevant land owner/manager.
- **A BMC CANNOT UNDERTAKE BUSHFIRE MANAGEMENT WORKS**
  The BMC has no staff and does not undertake bushfire management works. Works can only be undertaken within a committee members' own organisation/agency and not as a BMC entity.

CAN A BMC CONDUCT COMPLIANCE WORK?

The BMC has no legal role in forcing organisations/agencies' to conduct bushfire management works or to enforce compliance with such works. The BMC can however set in place requirements for bushfire management works that can be enforced by authorised persons within local government (e.g. a Fire Prevention Officer) or the relevant fire service Chief Officer under the *FESA 2005*.

Under *FESA 2005*, it is the responsibility of individual land owners/managers to take reasonable steps to

- *to prevent or inhibit the outbreak of fire on the land; and*
- *to prevent or inhibit the spread of fire through the land; and*
- *to protect property on the land from fire; and*
- *to minimise the threat to human life from a fire on the land*

A BMC, with the approval of the SBCC, can identify mitigation activities to address these requirements within its BMAP.

If a BMC is aware that non-compliance with required bushfire mitigation activities is occurring, the Committee should bring this matter to the attention of the relevant compliance authority. Where the land in question is within a Designated Urban Bushfire Risk Area (DUBRA), the relevant fire agency is the SA MFS. If the land is outside of gazette Fire Districts, the relevant fire agency is the SA CFS. For all private land, the relevant compliance authority is an authorised officer within local government. The table below outlines the relevant compliance authorities under *FESA 2005* on the basis of land tenure.

Land tenure	Compliance Authority
Private	Authorised Officer within local government
Local Government	Relevant Chief Officer to Minister for Local Government
Crown land management agency	Relevant Chief Officer to relevant Minister
Commonwealth of Australia	Relevant Chief Officer to relevant Commonwealth land management authority

CAN A BMC DIRECT FIREFIGHTING AGENCIES OR BRIGADES?

The BMCs have no authority to direct firefighting agencies or brigades in any manner. However, during the develop of BMAPs individual CFS brigades may propose areas for risk treatment and indicate whether they are prepared to support such works being undertaken in a volunteer capacity. These proposed risk treatments may be incorporated within BMAPs if the BMC considers it appropriate to do so.

The BMCs as an entity have no power to conduct or take part in firefighting or fire prevention operations.

UNDER REVIEW

Amendment to BMC Mid-Term Membership Management Procedure

This amendment wholly replaces the content of 'Membership Vacancy' on page 15 of the 'Guidelines for State Bushfire Coordination Committee and Bushfire Management Committees' (2018), and will be considered an attachment to the Guidelines.

Date Updated:	30/11/2021
Author:	Paula Slutzkin, Anthea Howard
Parent Document Name:	Guidelines for State Bushfire Coordination Committee and Bushfire Management Committees (2018)
Section(s) being rescinded:	BMC Membership Information (part); and BMC Membership Changes (part)

Authorised by: Chairman, State Bushfire Coordination Committee

Name	**Signature**	**Date**
Mr Mark Jones QFSM		30 / 11 / 2021

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Introduction

Why do we have this procedure?

The State Bushfire Coordination Committee (SBCC) is established under s.71 of the *Fire and Emergency Services Act 2005* (SA) (the *'FES Act'*), and has established bushfire management committees (BMCs) under s.72A for each gazetted bushfire management area (BMA). These BMAs are established by the Governor on the recommendation of the SBCC – see *Fire and Emergency Services (Bushfire Management Areas) Proclamation 2012* – and may be varied by the Governor by subsequent proclamation, again on the recommendation of the SBCC.

Currently, under s.72A of the *FES Act*, members of BMCs are appointed for a term determined by the SBCC on conditions approved by the Minister, and the office of a member becomes vacant only if the member dies; completes a term of office and is not reappointed; resigns by written notice to the SBCC; or is removed from office for reasonable cause by the SBCC.

Section 71E of the *FES Act* stipulates that the SBCC must provide an annual report to the Minister on the activities of the SBCC and each BMC. This report includes information about membership and attendance. Additionally, we are required to provide annual details of SBCC and BMC membership and remuneration to Parliament through the Boards and Committees Information System (BCIS) maintained by the Department of the Premier and Cabinet, as well as to the Department of Treasury and Finance.

These procedures have been developed to facilitate to support meeting these statutory and reporting requirements.

How is this procedure used?

This document provides a detailed step-by-step guide, using screenshots and detailed explanations to support understanding of the procedure and steps involved.

Once the process becomes more familiar, a reference with less detail may be preferred. A summary version of this procedure has also been provided (Objective ID A1595343), and flowcharts (Objective ID A1595346) and checklists are included to assist you complete all required steps.

Further support to understand and implement these procedures is available from the SBCC Secretariat if required (CFS.SBCC@sa.gov.au).

Prompts to undertake actions are included throughout this procedure, as outlined below:

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Submission Alerts:



Given the shared administrative responsibility of BMCs and the need for the SBCC to report to the Minister on the activities of the BMCs, clear and consistent communication between BMC Executive Officers and the SBCC Secretariat is imperative. For this reason, clear processes and responsibilities have been established for mid-term membership changes.

Forms and templates have been developed to ensure consistency of this communication across the 9 BMCs. The above alert will be seen where this procedure requires the preparation and/or submission of forms.

Records Management Alerts:



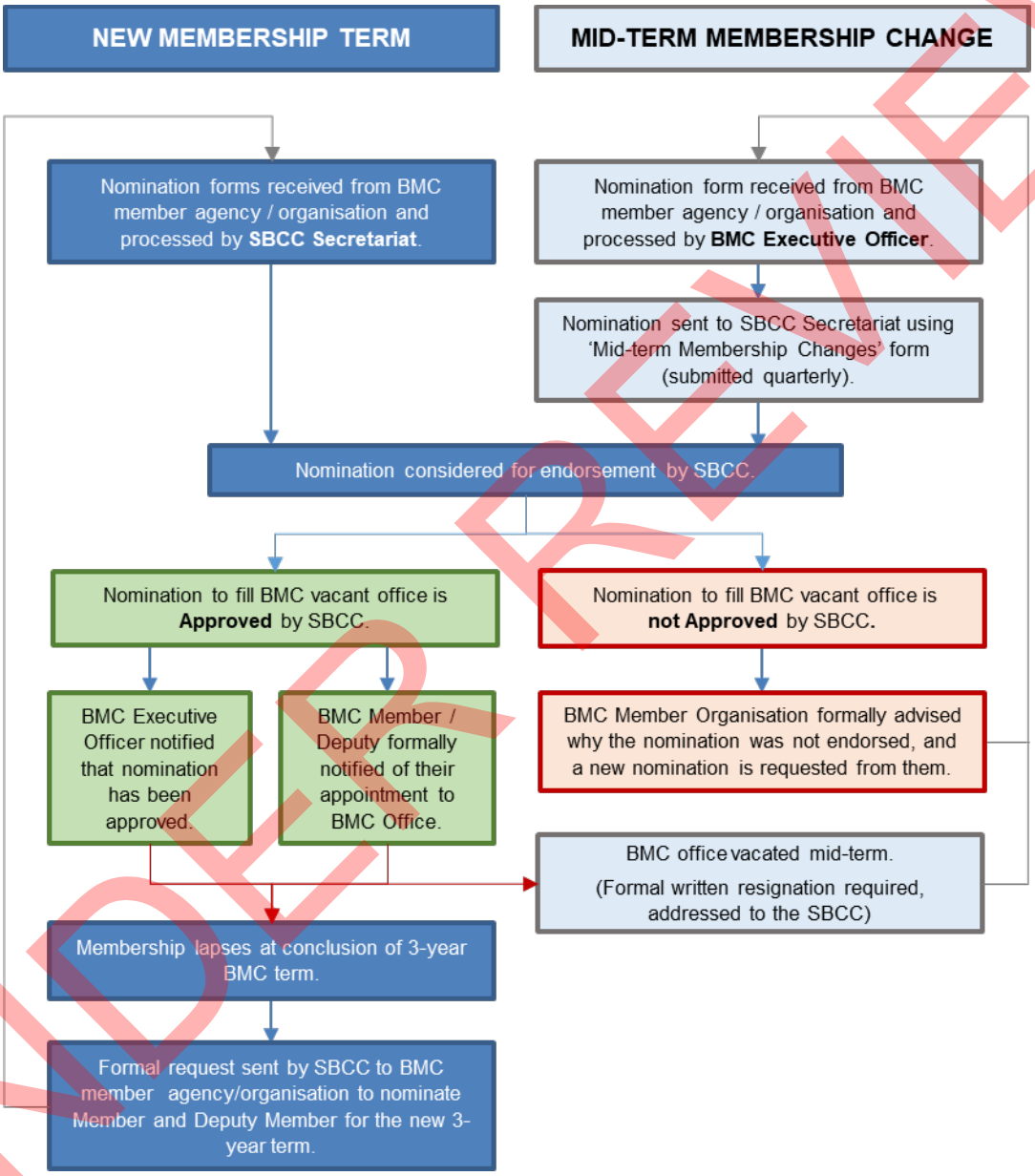
The emergency services sector (ESS) has a legislative obligation under the *State Records Act 1997* to create, capture, retain and manage documents and records, and compliance with the SAFECOM Records Management Policy 2017 (Objective document A804391; or can be found on the ESS intranet) will enable the ESS to meet its records management obligations.

All documents and records created, received, retained or managed by the ESS in the conduct of its business activities must be captured and kept appropriately.

Throughout the procedure the above alert is found, which highlights points at which an item needs to be saved to Objective.

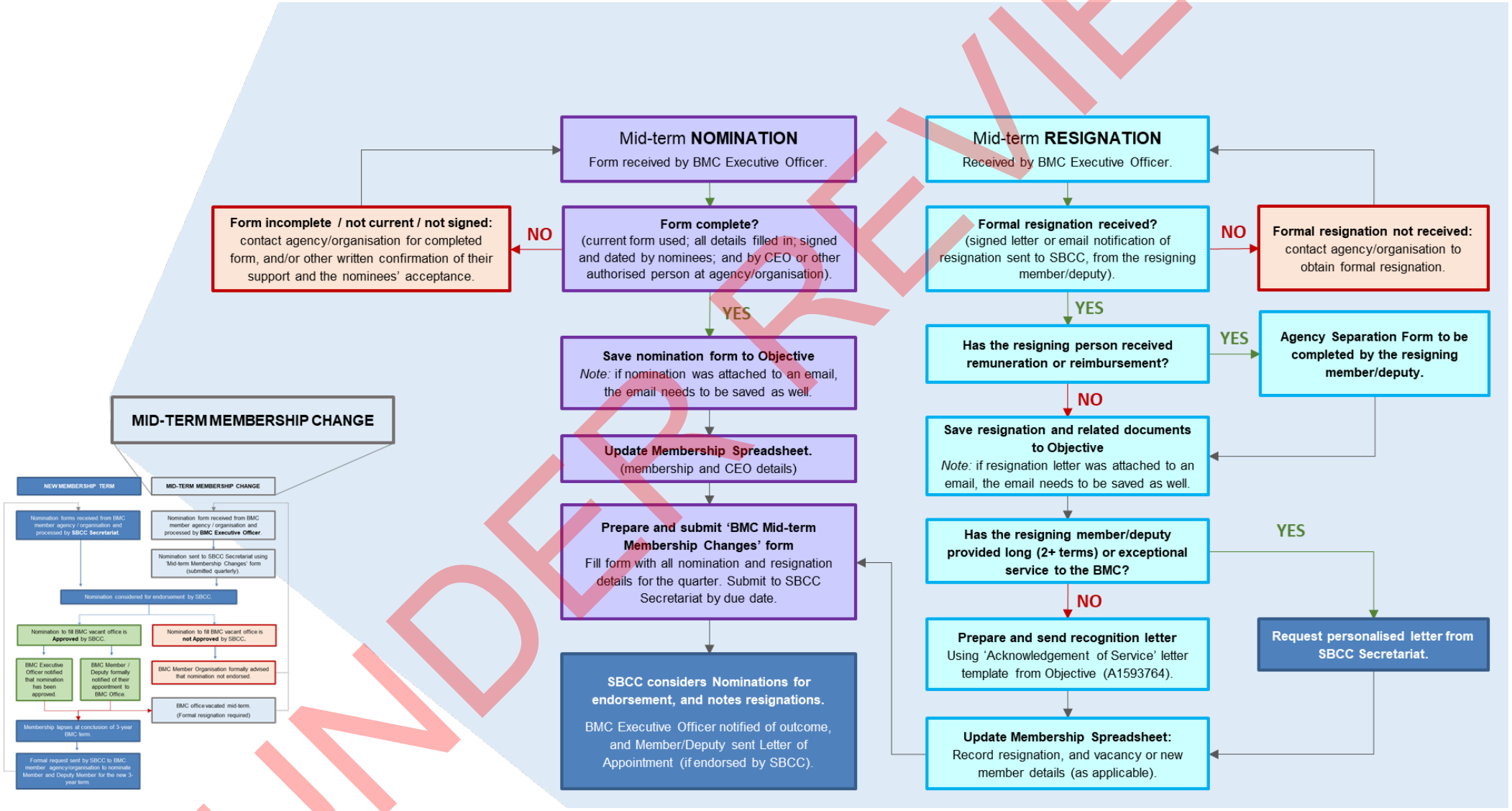
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Membership Flowchart



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Mid-term Membership Change flowchart



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BMC Membership Management Responsibilities

IMPORTANT NOTES:

* All nominations, including mid-term nominations, must be endorsed by the SBCC before members and deputies can vote at BMC meetings. They may attend as guest observers when they are not endorsed.
* Formal written resignations directed to the Chair of the SBCC (as the SBCC is the appointing authority) are required to process any mid-term resignations, in order to comply with reporting obligations. Resignation letters or emails need to be saved to Objective.
* Throughout this document, when referring to locations on Objective, 'xx BMC' refers to each individual BMC – e.g., AMLR BMC, Outback BMC, etc.

1 BMC Executive Officer (XOs) Responsibilities

The following lists set out the responsibilities of BMC Executive Officers in the membership management process.

1.1 Nominations and Resignations:

- Receive and process mid-term nominations and resignations.
- Collate mid-term nominations and resignations, and submit a summary to the SBCC for endorsement:
  - To be submitted approximately quarterly, with dates set by the SBCC;
    - Meeting requests will be sent by the SBCC Secretariat to BMC XOs with the due dates for these, in order to provide a reminder.
  - To be submitted using the 'BMC Mid-term Membership Changes' form provided by SBCC Secretariat (Objective location: xx BMC - Administration / xx BMC - Forms and Templates).

1.2 Maintain an Overview of Membership Changes:

- Maintain an up-to-date record of mid-term BMC membership changes, including resignations, nominations, and any other changes. The membership management spreadsheet provided by SBCC Secretariat ('xx BMC - 2021-24 term - Membership and Attendance') can be used for this; or your own processes.

1.3 Recognition of Service:

- Prepare (from template) and send routine thank-you letters when members/deputy members resign.
  - In cases where personalised thank-you letters are required – long (2+ terms) or exceptional service – forward requests on to the SBCC Secretariat.

1.4 Records Management / Objective:

- File nomination forms, resignations, thank-you letters, and related letters or emails, in the relevant folders in Objective using appropriate and consistent naming conventions. *See Appendix 1* for guides.
- Ensure that templates and forms used are obtained from Objective, so that they are current.
- Seek assistance and advice from the SBCC Secretariat if support with records management is required.

UNDER REVIEW

2 SBCC Secretariat Responsibilities

The following lists set out the responsibilities of BMC Executive Officers in the membership management process.

2.1 Nominations and Resignations:

- Manage the new term BMC Membership process (every 3 years).
- Forward any mid-term BMC nominations received (for example, any sent to the central mailbox – CFS.BMCMembership@eso.sa.gov.au) to the appropriate XO.
- Set dates for 'BMC Mid-term Membership Changes' forms to be submitted; and provide meeting requests / reminders to BMC XOs for these dates.
- Receive 'BMC Mid-term Membership Changes' forms (nominations and resignations) from BMC XOs.
- Coordinate the SBCC endorsement process.

2.2 Maintain an Overview of Membership Changes:

- Maintain a central database of BMC membership and changes, using information provided on 'BMC Mid-term Membership Changes' forms submitted by BMC XOs.

2.3 Communications:

- Communicate critical information to BMC XOs, for example:
  - Details of when and which new members and deputy members the SBCC has endorsed;
  - Updates from SBCC Meetings.

2.4 Recognition of Service:

- Prepare and send Letters of Appointment (issued by the SBCC Chair) to newly endorsed members/deputy members.
- Prepare and send personalised thank-you letters for resigning members / deputy members when requested by BMC XOs.

2.5 Records Management / Objective

- Maintain the general BMC Administration folder on Objective, ensure that all general BMC records are uploaded to relevant locations using appropriate file naming conventions, and ensure that templates and forms are current.
- Provide assistance and training to XOs and regional administration officers to support good records management practices.

3 Mid-term Nomination Process

When a mid-term nomination is received (either directly to the XO from the organisation or Member/Deputy; or forwarded on to you from the SBCC Secretariat), follow the instructions below to ensure that you complete all steps.

3.1 Check nomination form:

- Ensure that form is complete:
  - all details filled in;
  - signed and dated by Member and/or Deputy;
  - signed and dated by CEO or another authorised person at the agency/organisation.

UNDER REVIEW

- If all required sections of form are not completed, you will need to contact the agency/organisation to obtain a completed form, or other written confirmation (see examples in the 'Note' above) of their support and the nominees' acceptance.

  NOTE: *SBCC Secretariat needs written confirmation that the nomination has been accepted by the nominee; and that it is authorised and supported by the nominating agency/organisation.* ***The easiest way to meet this requirement is by ensuring all necessary sections on the nomination form are filled out****.*

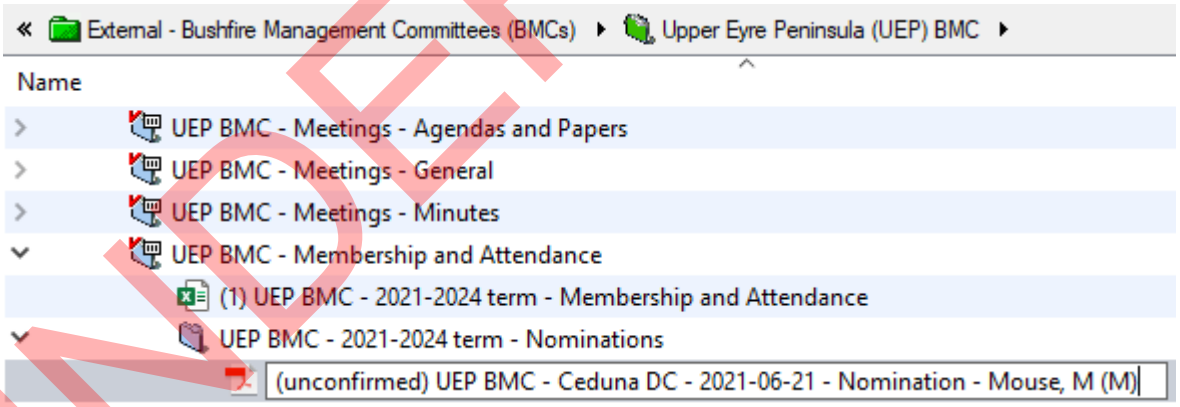
  However, alternate forms of written confirmation are also accepted, such as copies of minutes or election records which include endorsements (specifying the term of the endorsement), or emails stating support for the nomination from an authorised person within the agency/organisation.

3.2 Save nomination form:

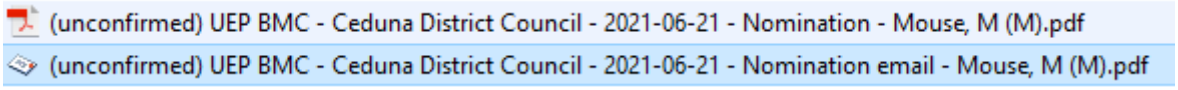
RECORDS MANAGEMENT ALERT: SAVE TO OBJECTIVE

- Save the nomination form to the relevant folder in Objective, using appropriate and consistent naming conventions *(see Appendix 1 for* ***folder locations*** *and* ***naming conventions*** *tables)*:
  - Objective location:
  - Naming convention:
    - (unconfirmed) [BMC name] BMC - [agency/organisation] - [date of nomination in **yyyy-mm-dd** format] - Nomination - [surname, first initial] (M for Member, or D for Deputy) – see sample below:

      (unconfirmed) UEP BMC - Ceduna DC - 2021-06-21 - Nomination - Mouse, M (M)



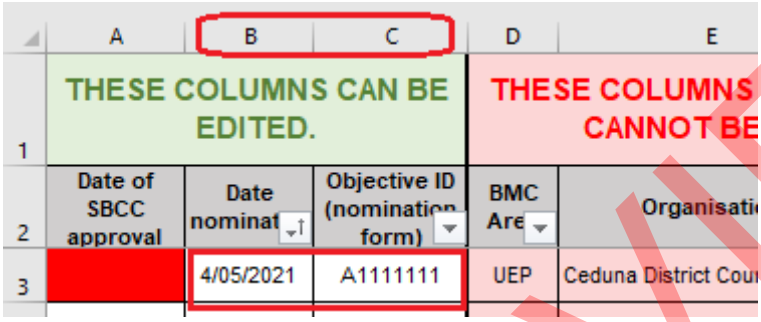
NOTE*: if a nomination form was sent attached to an email, save the email to Objective as well. These can be saved to the same location, but instead of the notation 'Nomination' you can annotate it 'Nomination email'. For example, if you had received a resignation letter for M Mouse attached to an email, you would save both files in the 'Nominations – awaiting endorsement' folder as follows:*



UNDER REVIEW

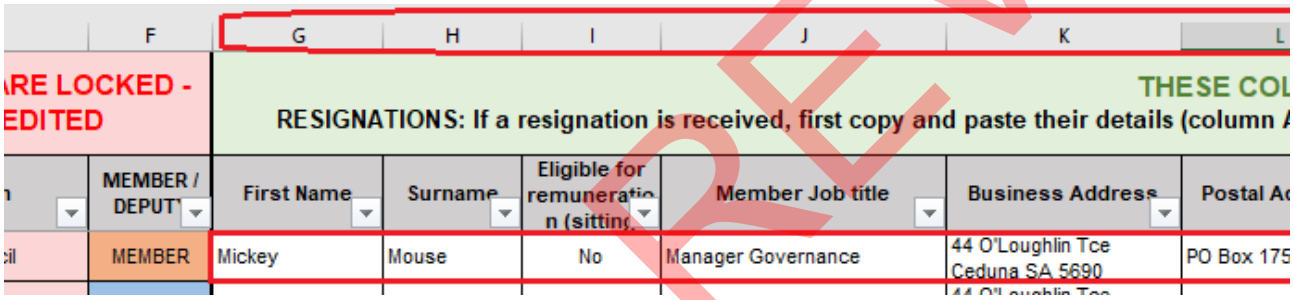
3.3 Update spreadsheet (membership details):

- In the 'Membership' tab of the '2021-24 term – Membership and Attendance' spreadsheet (shown below) provided by SBCC Secretariat, you need to enter the following information:
  - enter the **date** of the nomination into Column **B**, and the **Objective ID** of the nomination form in Column **C**:



	A	B	C	D	E
1		THESE COLUMNS CAN BE EDITED.		THESE COLUMNS CANNOT BE	
2	Date of SBCC approval	Date nominat	Objective ID (nomination form)	BMC Are	Organisati
3		4/05/2021	A1111111	UEP	Ceduna District Cou

  - enter the details from the form in Columns **G-Q**:



	F	G	H	I	J	K	L
	ARE LOCKED - EDITED	RESIGNATIONS: If a resignation is received, first copy and paste their details (column A					THESE COL
	MEMBER / DEPUT	First Name	Surname	Eligible for remuneratio n (sittin	Member Job title	Business Address	Postal Ac
	MEMBER	Mickey	Mouse	No	Manager Governance	44 O'Loughlin Tce Ceduna SA 5690	PO Box 175

NOTE:

- *As some cells are locked, you cannot 'Tab' between cells. However, if you highlight all the cells you want to update, you can then press 'Enter' to move to the next cell.*

3.4 Update spreadsheet (CEO details):

- Using the worksheet tabs at the bottom of the Excel spreadsheet, change to the 'CEOs etc' worksheet.
- Check the CEO details from the nomination form against the CEO details in the 'CEOs etc' tab in the BMC Membership spreadsheet. Update details if required.

3.5 Prepare nomination details to send to SBCC for endorsement:

SUBMISSION ALERT: PREPARE FORM FOR LATER SUBMISSION

- Add details to the 'BMC Mid-term Membership Changes' form, in preparation to send collated nominations to the SBCC for endorsement by the due date:

NOTE: *If you already have a form in progress for other resignations or nominations, continue with that form.*

UNDER REVIEW

- For any mid-term nominations received, fill in ALL the fields.
- The easiest way to do this is to copy and paste from the '2021-24 term – Membership and Attendance' spreadsheet:
  - Open the 'Membership' worksheet of the spreadsheet;
  - For the nominated member/deputy, select the cells in Columns **B to J**, and copy (Ctrl + C).

B	C	D	E	F	G	H	I	J
COLUMNS CAN BE EDITED.		THESE COLUMNS ARE LOCKED - CANNOT BE EDITED			RESIGNATIONS: If a resignation is received, first cop			
Date nominat	Objective ID (nomination form)	BMC Area	Organisation	MEMBER / DEPUT	First Name	Surname	Eligible for remuneratio n (sittin	Member Job title
19/05/2021	A1535483	AMLR	Adelaide Hills Council	MEMBER	Mickey	Mouse	No	Fire Prevention Officer

  - In the 'Membership Changes' form, highlight all the cells that you want to paste into (click under 'Nomination Date' and drag across to 'Member Job Title?' to select), and then paste the details (Ctrl + V).

NOMINATIONS RECEIVED:
(for endorsement by the SBCC)

	Nomination Date	Objective ID (Nomination Form)	BMC Area	Organisation	Member or Deputy?	First Name	Surname	Eligible for remuneration?	Member Job Title
1.									

- Repeat these steps as necessary for any further nominations.

- Send to SBCC Secretariat before each SBCC meeting (due dates will be advised).

  ***NOTE**: If there are issues with achieving quorum in a BMC due to nominations awaiting endorsement, liaise with SBCC Secretariat.*

3.7 *(Information Only)* SBCC Secretariat will coordinate endorsement by SBCC:

- The SBCC Secretariat will coordinate the endorsement process.
- Once endorsed, the SBCC Secretariat will notify XOs and update the 'Date of SBCC Endorsement' for the relevant Members/Deputies in the column in the 'Membership' tab of the '2021-24 term – Membership and Attendance' spreadsheet.

  ***NOTE:** If using your own membership management processes (e.g., on a separate spreadsheet), please liaise with the SBCC Secretariat regarding how this step will be managed.*

UNDER REVIEW

4 Mid-term Resignation Process

It is a requirement of the *FES Act* that resignations are addressed to the SBCC. Consequently, resignations need to be sent to the SBCC Secretariat, and will be forwarded on to BMC XOs for processing.

If this has not happened, contact the resigning member/deputy to obtain this. The member agency/organisation can send through notification of this if the Member/Deputy cannot be contacted.

4.1 Save the resignation letter and/or email:

RECORDS MANAGEMENT ALERT: SAVE TO OBJECTIVE

- Save to the relevant folder in Objective, using appropriate file naming conventions *(see Appendix 1 for **folder locations** and **naming conventions** tables)*:
    - *[relevant BMC folder]* **>** *xx BMC - Membership and Attendance* **>** *xx BMC - 2021-24 term - Resignations*
    - Naming Convention:
        - [BMC name] BMC - [agency/organisation] - [date of resignation in **yyyy-mm-dd** format] - Resignation - [surname, first initial] (M for Member, or D for Deputy)
        - UEP BMC - Ceduna District Council - 2021-06-21 - Resignation - Mouse, M (M)
    - Note the Objective ID of the letter to enter into the 'BMC Mid-term Membership Changes' form.

***NOTE**: if a resignation letter was sent attached to an email, you need to save the email to Objective as well. These can be saved to the same location, but instead of the notation 'Resignation' you can notate it 'Resignation email'. For example, if you had received a resignation letter for M Mouse attached to an email, you would save both files in the 'Resignations received' folder as follows:*

	Id
UEP BMC - Ceduna District Council - 2021-06-21 - Resignation - Mouse, M (M)	A1618686
UEP BMC - Ceduna District Council - 2021-06-21 - Resignation email - Mouse, M (M)	A1618688

4.2 Agency Separation Form (members/deputies who have claimed sitting fees):

SUBMISSION ALERT: FILL AND SUBMIT FORM TO SBCC SECRETARIAT

- If the member or deputy member resigning was eligible for sitting fees, and has been claiming them, they also need to complete an 'Agency Separation Form' so that they are removed from the South Australian Government payroll. Form located at http://cms.esau.sa.gov.au/public/download/?id=91199.

***NOTE:** if a personalised acknowledgement letter from the Chair of the SBCC is required for the resigning Member/Deputy, due to long (2+ terms) or exceptional service to the BMC, this needs to be requested from the SBCC Secretariat, either using the 'BMC Mid-term Membership Changes' form, or by emailing CFS.SBCC@sa.gov.au.*

- Open the '2021-2024 – Mid-term Acknowledgement of Service Letter' template (Objective location: xx BMC - Administration / xx BMC - Forms and Templates).
- Ensure name, address, date, and greeting sections are updated with the resigning member/deputy member's details.
- Print and send letter.

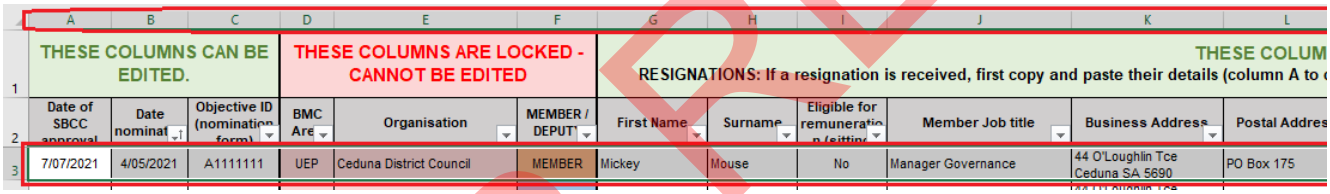
UNDER REVIEW

RECORDS MANAGEMENT ALERT: SAVE TO OBJECTIVE

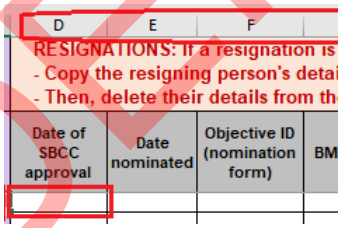
- Save letter into Objective. *See Appendix 1 for* ***folder locations*** *and* ***naming conventions*** *tables.*
  - Recommended location:
  - **Naming convention:** xx BMC - Resignation - Thank-you letter - *letter date* **yyyy-mm-dd** - *Agency/Organisation - Surname, First initial (M or D)*
  - Note the Objective ID of the letter to enter into the 'BMC Mid-term Membership Changes' form.

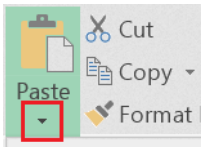
4.4 Record the resignation on the membership spreadsheet:

- Enter the resigning member/deputy member's details into the '2021-24 term – Membership and Attendance' spreadsheet provided.
- The easiest way to do this is to copy and paste from the 'Membership' worksheet to the 'Resignations' worksheet, following the steps below (this will save re-typing their details):
  - In the 'Membership' worksheet, find the member or deputy who is resigning, and copy their details.
    - In the example below, if the Member for Ceduna District Council (Mickey Mouse) has resigned, select cells A3 to Q3, and copy them (Ctrl + C).



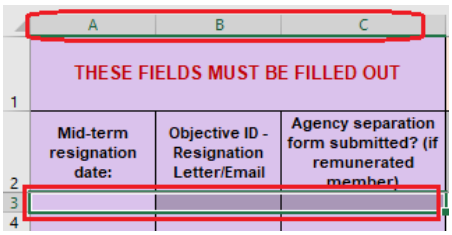
- Click into the next blank cell in Column D, and paste the member/deputy's details using 'paste values and number formatting' (click the arrow under 'Paste', and click the  icon):







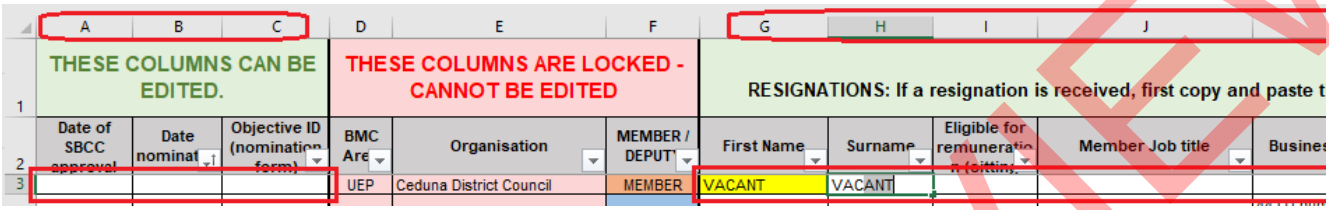
- Enter the mid-term resignation date in Column A; the Objective ID of the Resignation Letter/Email in Column B, and note whether an Agency Separation Form has been submitted in Column C.



UNDER REVIEW

4.5 Update spreadsheet (membership/vacancy details):

- Record the new member/deputy details (or vacancy) into the worksheet, by following the steps below:
  - Using the tabs down the bottom of Excel, return to the 'Membership' tab.
  - Delete the data from the relevant row (in this example, we will delete the data from the Member for Ceduna District Council. Since some columns are locked, you will need to delete the data in Columns **A to C**, and then Columns **G to Q**, separately.



  - Enter 'VACANT' under the Columns **G** (First Name) and **H** (Surname). As conditional formatting has been used, these cells will highlight yellow automatically when this text is entered.
  - If a new nomination has been received:
    - Follow the instructions above to enter the details of the new nomination.

4.6 Prepare to send the resignation to SBCC Secretariat:

SUBMISSION ALERT: PREPARE FORM FOR LATER SUBMISSION

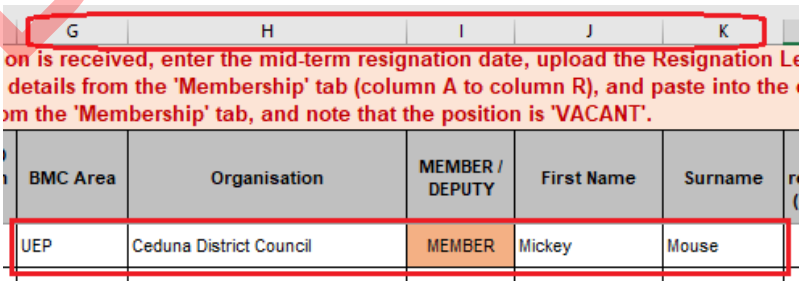
- Add details of resignation to 'BMC Mid-term Membership Changes' form, in preparation to send to the SBCC Secretariat by the due date:

NOTE: *If you already have a form in progress for other resignations or nominations, continue with that form instead.*

  - For any mid-term resignations received, fill in ALL the fields.
  - The easiest way to do this is to copy and paste from the 'Resignations' worksheet of the '2021-24 term – Membership and Attendance' spreadsheet:

Part 1:

  - Select the cells in Columns **G to K**, for the resigning member, and copy (Ctrl + C).



UNDER REVIEW

- In the 'Membership Changes' form, highlight all the cells that you want to paste into (click under 'BMC Area' and drag across to 'Surname' to select), then paste the details (Ctrl + V).

RESIGNATIONS RECEIVED:

	BMC Area	Organisation	Member/Deputy	First Name	Surname
1.					

Part 2:

	A	B	C
1	THESE FIELDS MUST BE FILLED OUT		
2	Mid-term resignation date:	Objective ID - Resignation Letter/Email	Agency separation form submitted? (if remunerated member)
3	1/01/2021	A11111111	N/A

- In the 'Membership Changes' form, highlight all the cells that you want to paste into (click under 'Resignation Date' and drag across to 'Agency Separation form' to select), then paste the details (Ctrl + V).
    - If requesting a personalised acknowledgement letter be sent from the Chair of the SBCC, due to long (2+ terms) or exceptional service to the BMC, note this and the reasons here. Ensure that enough detail is included so that the letter can be appropriately personalised.

Objective ID – Resignation Letter/Email	Agency Separation form submitted (if remunerated member)	Objective ID – Thank-you letter* *enter Objective ID of letter, or detail reasons if requesting a long (2+ terms) or exceptional service letter from the SBCC Chair.*
A9876543	N/A	Long service – 2.5 terms
A1234567	YES	A1212121

    - Repeat these steps as necessary for any further resignations.

- Send to SBCC Secretariat before each SBCC meeting (due dates will be advised).

UNDER REVIEW

Appendix 1 – Folder Locations and Naming Conventions tables

Objective Global Folder > 01. Corporate Direction > Boards, Committees and Meetings > External – Bushfire Management Committees (BMCs)

NOTE: In the tables below, 'xx BMC' refers to each individual BMC – e.g., AMLR BMC, Outback BMC, etc.

Table 1. Nominations & Resignations folders, and Membership and Attendance spreadsheets
(Found in Objective folder xx BMC - Membership and Attendance)

BMC	Nominations folder Objective ID:	Resignations folder Objective ID:	Membership and Attendance Spreadsheets Objective ID:
AMLR	fA219284	fA220036	A1561230
FL	fA220054	fA220053	A1561299
FMNY	fA219283	fA219285	A1561334
KI	fA220071	fA220072	A1563490
LC	fA220075	fA220074	A1561376
LEP	fA220077	fA220078	A1561385
MM	fA220080	fA220081	A1561394
Outback	fA220083	fA220084	A1561408
UEP	fA218500	fA218532	A1561411

Table 2. Forms and Templates

BMC Mid-term Membership Changes Form	BMC Acknowledgement of Service Letter Template	Agency Separation Form
(Found in Objective folder – xx BMC – Forms and Templates)		
A1566669	A1593764	http://cms.esau.sa.gov.au/public/download/?id=91199

Table 3. Naming conventions

Nomination forms	Resignations	Acknowledgement of Service letters
(unconfirmed) xx BMC - *Agency/org* - *Nomination date* **yyyy-mm-dd** - Nominations - *Surname, First initial* (M) & *Surname, First initial* (D)	(unconfirmed) xx BMC – *Agency/org* - *Resignation date* **yyyy-mm-dd** - Resignation - *Surname, First initial* (M or D)	xx BMC - Resignation – Acknowledgement of Service letter - *letter date* **yyyy-mm-dd** - *Agency/Org - Surname, First initial (M or D)*
e.g., (unconfirmed) UEP BMC - Ceduna District Council - 2021-06-21 - Nominations - Duck, D (M) & Mouse, M (D)	e.g., (unconfirmed) UEP BMC - Ceduna District Council - 2021-06-21 - Resignation - Mouse, M (M)	e.g., UEP BMC - Resignation - Acknowledgement of Service letter – 2021-07-01 - Ceduna District Council - Mouse, M

UNDER REVIEW

Appendix 2 – Checklists

CHECKLISTS

NOMINATIONS

- Nomination form checked for completeness ☐
- Nomination form saved to Objective ☐
- Updated Membership and Attendance Spreadsheet with nomination details ☐
- Checked (and updated if necessary) CEO details on Membership and Attendance Spreadsheet ☐
- 'BMC Mid-term Membership Changes' form prepared with nomination details ☐

RESIGNATIONS

- Formal resignation received ☐
- *(if remunerated member)* Resigning member submitted Agency Separation Form ☐
- Resignation & related documents saved to Objective ☐
- Acknowledgement of Service letter sent (or personalised letter requested) ☐
- Resignation recorded on 'Resignations' tab ☐
- Updated Membership and Attendance Spreadsheet with vacancy or new member details ☐
- 'BMC Mid-term Membership Changes' form prepared with resignation details ☐

UNDER REVIEW

Amendment to 'Guidelines for State Bushfire Coordination Committee & Bushfire Management Committees' (January 2018) - Bushfire Management Area Plan (BMAP) Amendments

This amendment wholly replaces the content of 'BMAP Amendment Agreement and Approval' contained on page 38 of the 'Guidelines for State Bushfire Coordination Committee and Bushfire Management Committees' (2018).

Date Updated:	3/11/2021
Author:	Danielle Drever, Anthea Howard
Parent Document Name:	Guidelines for State Bushfire Coordination Committee and Bushfire Management Committees (2018)
Section being rescinded:	BMAP Amendment Agreement and Approval

Authorised by: Chairman, State Bushfire Coordination Committee

Name	**Signature**	**Date**
Mr Mark Jones QFSM		30 / 11 / 2021

UNDER REVIEW

1. Bushfire Management Area Plan (BMAP) Amendments

BMAP amendments, as a standing BMC and SBCC meeting agenda item, should be prioritised to keep BMAPs up to date and maintain the accuracy of BMAP information between formal four yearly reviews[1].

An amendment may be undertaken as either a **minor** or **major** amendment (as defined within these Guidelines). All amendments must be approved by both the BMC and SBCC, and, where the amendment is major, public consultation must be undertaken allowing for a period of 6 weeks[2] for public comment. This process is illustrated in *Figure 1* below.

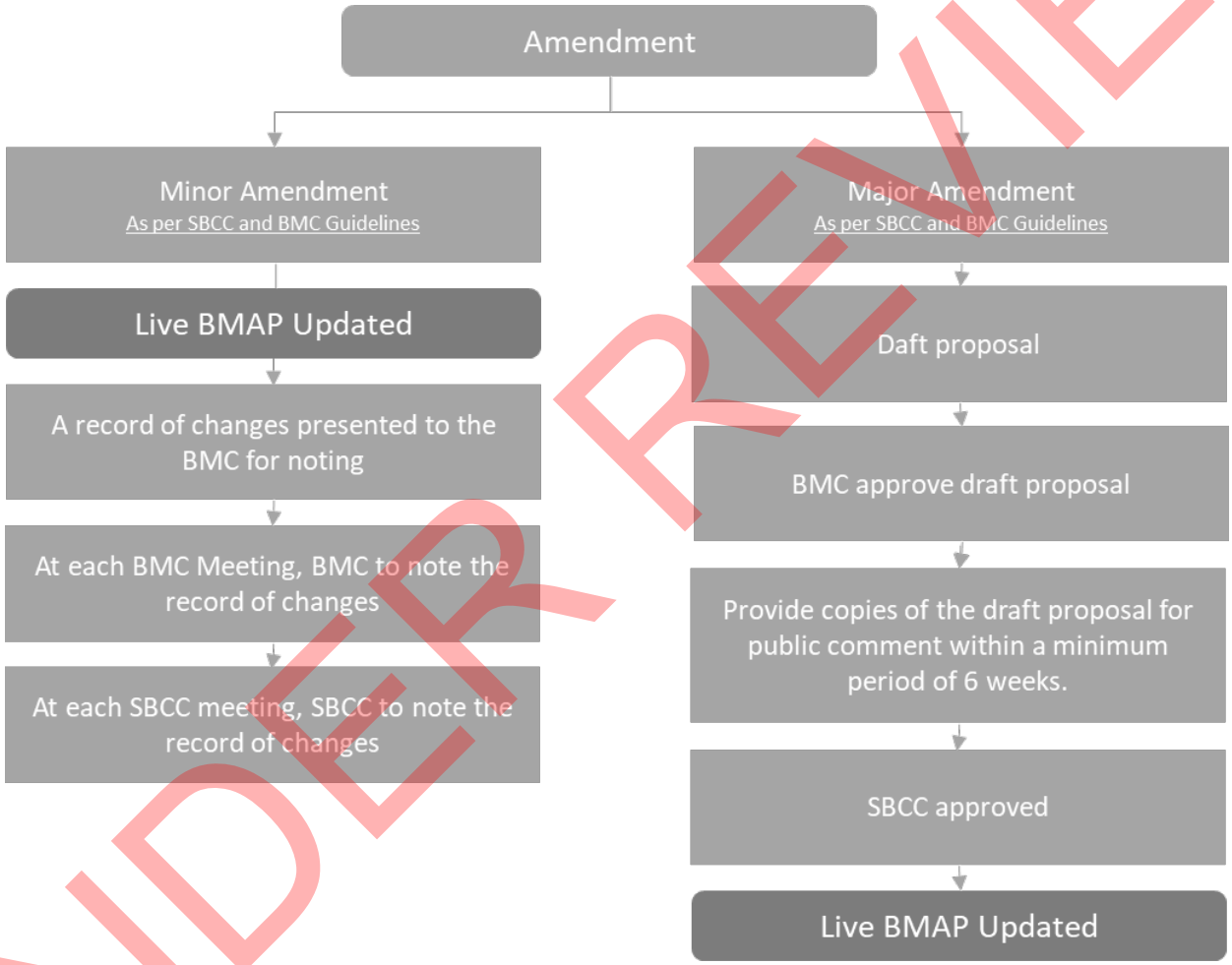


Figure 1 BMAP Amendment Process

UNDER REVIEW

[1] Four yearly review of the BMAP required under section 73A(5)(a) of the *Fire and Emergency Services Act 2005* (SA)
[2] Section 28 of the *Fire and Emergency Services Regulations 2021*

1.1. Minor Amendments

The BMC and the SBCC will note minor amendments at formally constituted committee meetings.

A minor amendment, as per section 73A(8) of the FES Act, is defined as an amendment made;

- *To ensure a BMAP is consistent with the State Bushfire Management Plan; or*
- *To remove or replace information in the plan that has been superseded by information that is more reliable or up-to-date; or*
- *In order to make a change in form*.

Examples of minor amendments include (but are not limited to):

- Corrections (inaccuracies, changes of ownership, inclusion of information previously missed, reflecting impacts of bushfire incidents in the sense of asset removal).
- Changes in material circumstances resulting in changes to risk ratings and treatments (eg. clearance being undertaken resulting in increased separation distance).
- Changes in external standards (eg. changes to AS3959 or the Building Code of Australia that impact risk ratings).
- Changes in available information (eg. new and improved data or modelling that updates a risk rating and may then result in a change in risk reduction treatments applied to the asset the subject of the risk assessment, or to the treatment itself).
- Any amendment undertaken as part of the implementation of an action approved by the BMC and SBCC.
- Updates to supporting data and mapping layers.

1.2. Major Amendments

All major amendments must, as per section 73A(7) of the FES Act, be prepared as a draft and;

- Be reviewed and approved by the BMC; and
- Publicised for 6 weeks[3] through public notice with interested persons invited to provide written comment; and
- Be approved by the SBCC.

Major amendments include:

- New groups of assets across multiple land tenures with multiple owners/managers, or new developments
- Changes of land use
- Any other amendment that does not constitute a minor amendment.

UNDER REVIEW

[3] Section 28 of the *Fire and Emergency Services Regulations 2021*

1.2.1. Major Amendments - Consultation

Where a major amendment is proposed it must be released for public consultation allowing for a minimum period of 6 weeks.[4] Under section 73A(7)(b) of the FES Act, the BMC must also take reasonable steps to consult on the major amendment with:

- the State Bushfire Coordination Committee; and
- any SACFS organisation specified by the Chief Officer of SACFS (for example, brigades and Groups in an area covered by a proposed major amendment); and
- a public sector agency (within the meaning of the *Public Sector Act 2009*) designated by the Minister; and
- any Council whose area is wholly or partly within the relevant bushfire management area; and
- any regional Landscape Board whose region is wholly or partly within the relevant bushfire management area; and
- any other person or body, or person or body of a class, prescribed by the regulations for the purposes of this subsection (note that currently none are specified).

In most cases – other than SACFS brigades and Groups as noted above – the organisations listed are members of the SBCC and/or BMCs and additional consultation will not be required. However, the intent of the consultation process is to ensure that those entities directly impacted by the proposed major amendment would be provided with the opportunity to comment. If, for example, a school or business was included within the area, the relevant authority would be invited to comment.

UNDER REVIEW

[4] Section 28 of the *Fire and Emergency Services Regulations 2021*